



NLC INDIA LIMITED
‘Navratna’-Government of India Enterprise
Block-1, NEYVELI-607801, Cuddalore District, Tamil Nadu, INDIA.

OFFICE OF THE GENERAL MANAGER

RENEWABLE ENERGY POWER PLANTS

CTO OFFICE

TENDER DOCUMENT FOR

**COMPREHENSIVE OPERATION AND MAINTENANCE OF NLCIL’s 65 MW(40 MW AT
BLOCK 5 AND 25 MW AT KOLLIRUPPU) SOLAR POWER PLANT AT NEYVELI FOR
THREE YEARS DURATION**

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**COMPREHENSIVE OPERATION AND MAINTENANCE OF
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SECTION I
NOTICE INVITING BID
(e-TENDER) (TWO COVER SYSTEM)

GeM Bid

1.0 INVITATION

Online Bids in English are invited by NLC India Limited (NLCIL) for Comprehensive operation and maintenance of NLCIL's 65 MW (40 MW at Block 5 and 25 MW at Kolliruppu) Solar Power Plant at Neyveli for three years duration as per the details given below followed by e-Reverse Auction.

The bidders are requested to login to their GeM Seller ID for participation in GeM Bid.

2.0 TENDER DETAILS

Sl no.	Title	Description
1	Name of the Work	COMPREHENSIVE OPERATION AND MAINTANANCE OF NLCIL's 65 MW (40 MW AT BLOCK 5 AND 25 MW AT KOLLIRUPPU) SOLAR POWER PLANT AT NEYVELI FOR THREE YEARS DURATION
2	Duration of Contract	3 years from the date of Handing Over of the Site
3	Mode of Tender	GeM Bid
4	Cost of Tender Documents (CTD)(Non-Refundable)	Nil
5	EMD/Bid Guarantee Amount	Rs. 20,83,000 /- (Twenty lakh Eighty Three thousand only)
6	Pre Bid Conference-Date	As per GeM Bid document
7	Date & Time of opening of GeM Bid (Cover – I)	As per GeM Bid document
8	Date & time of opening of Financial Bid (Cover - II)	Will be informed later to the qualified bidders in Cover-I by GeM.
9	Date & time of e-Reverse Auction	Will be informed later to the qualified bidders by GeM.

Note:

- The points for discussion shall be furnished, two days in advance to pre-bid meeting to the e-mail ID: cgmppbd@nlcindia.in
- Bidders who are interested to participate in the Pre-bid meeting may send their request to cgmppbd@nlcindia.in furnishing Company name and address, Name of the authorized person to attend pre bid meeting, contact no and email address to enable us to send the link for participating in the pre bid meeting.



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3.0 PRE-QUALIFICATION REQUIREMENTS

3.1 TECHNICAL CRITERIA

- i. The Bidder should have executed
“Supply, Erection, Testing and Commissioning of solar power plant
(or)
Supply, Erection, Testing, Commissioning and Operation & Maintenance of solar power plant.
(or)
Operation & Maintenance for a period of not less than 1 year.
in solar power plants/projects within India in the name of bidder / partner in case of partnership firm in any Government /Quasi Government / Public Sector / Public limited / Private Limited Company within the last seven years as below as on the scheduled date of tender opening.
- a) One work of executed value not less than Rs.6.66 Crore
(Or)
b) Two works of executed value each not less than Rs 4.17 Crore
(Or)
c) Three works of executed value each not less than Rs 3.33 Crore

Note: The above solar power plant shall not be less than 5MW Capacity.

Documentary evidence for the above PQR:

Copy of LoA/Agreement/Work Order along with work completion certificate/ performance certificate/ finalization order issued by the party with whom the Work order / Agreement/ Contract has been entered.

3.2 FINANCIAL CRITERIA

- a) Average Annual turnover of the bidder for the 3 financial years immediately preceding the original scheduled Tender Opening date, should not be less than Rs 83 Lakh.
In case, if a bidder meets the technical QR but could not furnish his / their audited financial statement of three consecutive financial years preceding the last financial year for evaluating the average Annual turnover, due to the incorporation / formation of the bidder, with in a period of less than 3 years from the original scheduled date of tender opening, then, such bidder shall also be considered and the Average annual turnover of such bidder shall be arrived at as below:
- If the bidder furnished audited financial statement (Profit & Loss Account and Balance Sheet) for the last financial year only, then such bidder's average Annual turnover shall be arrived at by dividing the Turnover of the last financial year by three.
 - If the bidder furnished audited financial statement (Profit & Loss Account and Balance Sheet) for the last two financial years only, then the bidder's average Annual turnover shall be arrived at by dividing the sum of Turnover of last two financial years by three.
- b) The Bidder shall have positive Net worth as per their latest audited financial statement.
- c) In cases, where audited financial statement (Profit & Loss Account and Balance Sheet) for the last financial year immediately preceding the original schedule date of Tender opening are not



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available, a certificate would be required from the bidder stating that the Financial statement of the bidder are under audit as on the date of tender opening. In such case, the audited financial statement of three consecutive financial years preceding the last financial year shall be considered for evaluating the financial parameters.

3.3 CONDITIONS FOR PARTNERSHIP FIRM:

- a) In case of bid submitted by any partnership firm, the pre-qualification work experience of partnership firm / any of the Partners of the firm shall be considered for evaluation. However, the financial Turn Over and Net Worth requirement, if any specified shall be fulfilled by the Partnership firm only
- b) If the bidder is a partnership firm, the partner on whose pre-qualification the work was awarded, shall not withdraw from the partnership till the completion of the work in case they happened to be the successful bidder. If there is any reconstitute on of the partnership, it is the responsibility of the firm to intimate the same to NLCIL immediately. Otherwise, the contract will be liable for termination at the risk & cost of the contractor.
- c) If the work experience is furnished in the name of any of the partner of Partnership Firm, to satisfy the prescribed pre-qualification requirement in the tender, a declaration / undertaking from that partner as "I shall not withdraw from the partnership till the completion of the work, in case our firm happened to be the successful bidder" is to be enclosed along with the bid in Cover-I.
- d) In case of a bidder being a partnership firm and using the PQR of a Partner to qualify in the tender and if the same PQR is used by more than one bidder for the same tender, all the bidders using the same PQR will be disqualified.
- e) In case, a bid is submitted by a partnership firm, any partner(s) of that Partnership firm cannot bid separately for the same Tender. If the Bid is submitted by both the partnership firm & any partner(s) of that Partnership firm in the same tender, the bids of the Partnership firm and partner(s) will be disqualified.

4.0 OTHER REQUIREMENTS:

- 4.1 The bidder should have registered (its establishment) under ESI Act 1948 and have the Employer's code allotted in favour of his establishment. The ESI code number so allotted shall be furnished with documentary proof along with the offer. In case of exemption the details of the same shall be furnished.
- 4.2 The bidder should have independent Provident fund code number allotted in favour of his establishment under EPF & Miscellaneous Act. 1952. The PF code number so allotted shall be furnished with documentary proof along with the offer. In case of exemption the details of the same shall be furnished.
- 4.3 The personnel / workmen engaged by the bidder for execution of works in NLCIL shall be on the rolls of the bidder agency and shall have to be given appointment letter/ Employment card under CL (R & A) Act issued by the bidder / partner in case of partnership firm to that effect. The bidder has to furnish a certificate of undertaking to that effect, along with the offer.
- 4.4 If the aggregate value of the goods and services rendered by the bidder in a financial year exceeds Rs.20 Lakhs, the bidder should possess valid certificate of registration under the Goods and Service Tax Act/Rules and furnish a copy of the same. In case, the aggregate value of the goods and services rendered by the bidder does not exceed Rs.20 Lakhs, a self-declaration to this effect shall be furnished.



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4.5 The bidder should have obtained the Permanent Account Number (PAN) under the Income Tax Act and the bidder shall provide a copy of PAN and the self-attested print-out of the online IT statements indicating Zero Tax liabilities for Four Consecutive years prior to bidding. NLCIL reserves the right to send the same to the Income tax Department for verification.

5.0 Bid submitted without proper documentary evidence to substantiate the fulfilment of the Qualifying Requirements as specified are likely to be rejected without assigning any reasons.

6.0 TIME SCHEDULE:

Three years from the date of Handing Over of the site

7.0 Bid Submission & Opening:

(i) All bids, including all attachments/enclosures shall be prepared in English Language only and submit the same. The bidder shall submit the offer for full scope of work indicated in the Tender Specification.

(ii) The Offers/Bids are to be obtained in two Part system as detailed below: -

PART – I (through online)

Earnest Money Deposit (EMD) /Bid Guarantee (As per Annexure - 2), Form of Bid (As per Annexure - 3), Digitally signed Affidavit (As per Annexure-1), Power of Attorney, Techno-Commercial acceptance (Annexure – 4), Integrity Pact (As per Annexure-5), Partnership Deed (if any) and all other details as given in this Volume.

Part-II (Price) (through online)

(i) Price Bid with completely filled in Schedule of Prices.

8.0 BIDDING PRICE

Bidders are advised to quote the most competitive price in the initial bid as well as in the Reverse Auction (RA), wherever applicable, since there will not be post tendering negotiations with the L1 bidder under any circumstances.

9.0 NO CLAIM FOR COMPENSATION FOR SUBMISSION OF BID:

9.1 The submission of any bid connected with these documents and specifications shall constitute an agreement that the Bidder shall have no cause of action or claim against NLC India Limited for the rejection or non-acceptance of his Bid. NLC INDIA LTD shall always be at liberty to reject or accept any bid or part thereof at its sole discretion and any such action will not be called into question and the bidder shall have no claim in that regard against NLC INDIA LTD.

9.2 The Bidder whose bid is not accepted shall not be entitled to make any claim on account of costs, charges and expenses incidental to or incurred by such Bidder, as a result of or in connection with the submission of the bid, or the consideration of the bid by NLC INDIA LTD, even if NLC INDIA LTD, elects to modify/withdraw/abandon the Invitation to Bid or does not accept the bid.



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10.0 BID VALIDITY:

The Bid should be kept valid for acceptance for a period of 120 days from the date of opening of the Bid – Part-I and has to be extended from time to time if situation warrants due to administrative procedures in vogue. In such case, the Bid Guarantee shall also be extended suitably.

Unilateral revision or withdrawal of offer by the Bidder within the subsistence of the validity period of offer shall not be permitted. Violation of this condition shall result in rejection of the Bid without notice and banning as per NLCIL procedure.

11.0 DEVIATION:

- 11.1 All the clauses in the Technical and Commercial Conditions and Scope of Services and other conditions are vital and no deviation is permitted in these clauses. The bidder is not permitted to take any deviation to the terms and conditions stipulated in the tender.
- 11.2 The bidders may seek clarification to the prescribed clauses / or different parts of the tender documents. But such request of clarifications, if any, should reach the NLCIL within ten days from the date of tender. Request received after this period shall not be considered.

12.0 NLC INDIA LTD's right to accept the bid

- 12.1 NLC INDIA LTD shall always be at liberty to accept any bid or bids or part thereof at its sole discretion and any such action will not be called into question and the bidder shall have no claim in that regard against NLC INDIA LTD.
- 12.2 NLC INDIA LTD is also at liberty to drop all further action in the matter at any stage but must be before issuing Letter of Award (LoA). However, the decision in this regard of NLC INDIA LTD is final and binding on the bidders.

13.0 AWARD CRITERIA

- 13.1 NLC INDIA LTD reserves the right to accept or reject the bid and to annul the bidding process and reject the bid at any time prior to Award of Work, without thereby incurring any liability to the affected Bidder and not obliged to inform the grounds of such action. NLC INDIA LTD's decision will be final in this regard.
- 13.2 On the Bid being accepted by the NLC INDIA LTD, Letter of Award (LoA) will be issued by NLC INDIA LTD to the Successful Bidder in two originals. The successful bidder to affix the signature and return one original to the NLC INDIA LIMITED, for accepting the Letter of Award (LoA).
- 13.3 Contract will be signed and executed by and between the NLC INDIA LIMITED and the Successful Bidder/Contractor, at the earliest within 15 (Fifteen) days from the NLC INDIA LIMITED Letter of Award, which shall be valid till completion of all the obligations on the part of the Contractor under this Contract. The stamp Papers shall be purchased in the name of NLC India Ltd., Neyveli or the Contractor and the same should have been purchased within 6(six) YEARS prior to the date of Contract.
- 13.4 The Contractor shall present himself for signing of the Contract with proper power of attorney and other requisite materials.
- 13.5 The NLC INDIA LIMITED shall prepare two (2) originals of Contract as described for signing the Contract. One (1) original will be given to the Contractor for his record and other original will be retained by the Purchaser. Within one (1) month after signing the Contract, the Contractor shall make and submit 5 (Five) photo-copies of the Contract documents complete with all enclosures, neatly bound, to the Purchaser, along with a scanned copy in Pen drive of entire document free of charge.



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SECTION-II
INSTRUCTIONS TO BIDDERS

Bidders are requested to read the terms & conditions of this tender before submitting their online bids.

1.0 TENDER DOCUMENTS:

The tender document is published on GeM portal.

2.0 BID VALIDITY:

BID shall be kept valid for 120 Days from the date of Tender opening.

3.0 EARNEST MONEY DEPOSIT (EMD)/Bid Guarantee:

3.1 The EMD/Bid Guarantee can be in any one of the following forms:

Demand Draft/NEFT/RTGS/Banker's Cheque/Bank Guarantee from any Scheduled Commercial bank authorized by RBI. The Demand Draft shall be drawn in favour of "NLC INDIA LIMITED, payable at Neyveli or payable at par at Neyveli. Bank Guarantee should be executed on a non-judicial stamp paper for a value of Rs.100.00 (One Hundred only) as per enclosed format and it shall be valid for 180 days from the date set for tender opening.

3.2 The Bank Guarantee issued by the bank on behalf of bidder in favour of "NLC India Limited" shall be in paper form as well as issued under the Structured Financial Messaging System (SFMS). Any Bank Guarantee submitted in physical mode, including EMD/Bid Guarantee, which cannot be verifiable through SFMS will be rejected summarily. The details of beneficiary for issue of BG under SFMS platform is furnished below:

Name of Beneficiary	NLC India Limited
Unit/Area/Division	Corporate Office/REPP Division
Beneficiary Bank, Branch & Address	State Bank of India Block-2, Neyveli-607801
IFSC Code	SBIN0000958
Swift Code	SBININBB457
Email	sbi.00958@sbi.co.in

The Bank Guarantee shall be furnished on Stamp Paper of value of not less than Rs.100/-purchased within 6 (Six) months prior to the date of execution in the name of the Bank Executing the guarantee.

3.3 In case of EMD/ Bid Guarantee remitted through **RTGS/ NEFT**, the designated Bank Account (for New Projects) is State Bank of India, Neyveli (Main), Block-2, Branch Code: 00958, IFS CODE: SBIN0000958, ACCOUNT NUMBER: 30623095200.

3.4 The Bank commission charges will be to the account of the bidder. The net amount transferred should be equal to the amount indicated.



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- 3.5** The remittance details viz., UTR number shall be clearly indicated by the bidder in their offer and the qualification of the bidder is subject to receipt of amount of EMD/Bid Guarantee stipulated in the tender.
- 3.6** Bids received without full EMD/Bid Guarantee in the aforesaid manner or in any other manner or short in amount will be summarily rejected. Deposit against any other contract with NLCIL or the amount held by NLCIL pending enquires will not be treated as EMD/Bid Guarantee.
- 3.7** No interest shall be paid on the EMD/Bid Guarantee submitted by bidders.
- 3.8** If the bidder withdraws his offer within the validity period or fails to accept the Letter of Award for any reason whatsoever, then the earnest money deposited by the bidder shall be forfeited, along with penal action as indicated in General Conditions.
- 3.9** The Micro and small scale Units registered under single point registration scheme of the NSIC/covered under MSMED Act,2006/MSME are exempted from furnishing Bid Guarantee, provided that such Micro and Small Scale Units are registered under single point registration scheme of NSIC/covered under MSMED Act, 2006/MSME/UDYAM and the same is valid on the scheduled date of tender opening and the product range mentioned in the certificate is the same or similar to our requirements. Copies of necessary certificates duly attested by any Notary public (or) Gazetted Officers (or) practicing Chartered Accountant with seal and date shall only be accepted.
- 3.10** The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.
- 3.11** If the quarters address under NLCIL control is indicated as 'communication address' in the NSIC certificate furnished by the contractor, it will be accepted. But if it (quarters address under NLCIL control) is mentioned as 'Factory address' the NSIC certificate will be rejected.

4.0 CORRIGENDUM:

Amendments /Errata / corrigendum / clarifications, if any issued for the tender shall form part and parcel of the tender document. Amendments /Errata / corrigendum / clarifications will be posted in GeM portal (Can be seen through seller login, under the GeM bid for this tender). Bidders are requested to visit the above websites and note the amendments before submission of offer. Any ignorance on the part of the firms in not seeing the website will not be an excuse. Amendments/ Errata/corrigendum / clarification will be numbered serially. The bidders are requested to submit all the Amendments / Errata / Corrigendum / Clarifications issued for the tender.

5.0 INTEGRITY PACT(Applicable)

NLCIL is committed to have most ethical business dealing with the Bidders, Bidders and Contractors of goods and services and deal with them in a transparent manner with equity and fairness. In order to achieve these goals, NLCIL is implementing the Integrity Pact Programme in co-operation with Central Vigilance Commission (CVC) and renowned International Non Governmental Organization, Transparency International India (TII). The Integrity Pact Programme will cover Tenders / Contracts valued at Rs.1 Crore (or) above.

The Integrity Pact Programme covers the following aspects:

- i) Commitments and Obligations of NLCIL (Principal).



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- ii) Commitments and Obligations of Bidders / Bidders /Contractors (Counterparties).
- iii) Violations and Consequences.
- iv) Independent External Monitors.

INDEPENDENT EXTERNAL MONITORS

Shri. Anand Deep, IRS (Retired) Flat No. 804, Prithvi Ratan Green Apartments, 7/172, Swaroopnagar, Kanpur (UP) - 208 002.	anand.deep117@gmail.com
Shri. Prem Chand Pankaj, CMD/NEEPCO (Retired) M-402, Pioneer Park, Sector-61, Golf Course Extn. Road, Gurgaon.	prempankaj@gmail.com

5.1 ROLE OF IEMs :

“The main role and responsibility of IEM is to resolve issues raised by an intending bidder regarding any aspect of the tender which allegedly restricts competition or indicates bias towards some bidders. IEMs are expected to examine process integrity and not expected to concern themselves with fixing of responsibility on officers”.

As per the Integrity Pact Programme, an “Integrity Pact”, which envisages an agreement between the prospective Bidders, Bidders & Contractors and NLCIL, committing the persons / officials of both parties, not to exercise any influence on any aspect of the contract. Only those Bidders/Bidders / Contractors, who have entered into such an “Integrity Pact” with NLCIL, would be competent to participate in the bidding. In other words, entering into this Pact would be a preliminary qualification.

Hence the bidder shall submit the Integrity Pact agreement duly filled and signed.

The format of “Integrity Pact”, which should form a part of the Tender of value more than Rs. 1 Crore is enclosed

6.0 TENDER SUBMISSION:

- 6.1 The bidder shall submit his offer through GeM portal. All the information in the Tender shall be in English language.
- 6.2 The bidders are advised to visit the site on any of the working days and assess the nature of work and other details at their own cost to make themselves fully conversant with the scope of the work, technical requirements etc prior to submission of bids.
- 6.3 Tenders received in the any other mode other than specified will not be accepted.
- 6.4 Authorization letter for the signatory to the documents shall be enclosed in the online offer
- 6.5 NLCIL reserves the right to reject such bids, which are not in conformity with the above requirement.

7.0 TENDER OPENING:

- 7.1 The e-Tenders are to be submitted before the date and time mentioned in tender through GeM.



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- 7.2 On the scheduled date and time of tender opening, Tender Opening Committee will open the QR and Techno-commercial offer i.e Part – I online bids.
- 7.3 The Part-II opening date and time will be intimated only to the bidders qualified in Part-I through GeM.

8.0 PROCESSING OF TENDER:

- 8.1 Offer should be submitted in **Two Part system**.
- 8.2 Part-I shall be opened on the scheduled date of tender opening. The offers/bids of the bidders who satisfy the conditions of EMD shall alone be considered for further evaluation.
- 8.3 The EMD shall be submitted as specified in tender documents, on or before due date & time for submission of tender as mentioned in NIB/GeM Bid. Otherwise, the offer will be liable for rejection.

9.0 EVALUATION OF BID

The following procedures would be followed for evaluation of Bids.

- i) The bidders who satisfy the EMD condition shall alone be considered for further evaluation of their bids.
- ii) The eligible bidders who qualify in PQR conditions alone shall be considered for further evaluations for techno-commercial aspects.
- iii) The Bidders who qualify on techno-commercial aspects alone will be considered for price cover/Financial Bid opening (Part-II).
- iv) The procedure for 50% elimination issued by GeM /GOI from time to time through Notification/ Circular/ Office Memorandum will be followed for reverse auction. Bidders are advised to read the GeM reverse auction procedure and terms and conditions thoroughly, and contact GeM Helpdesk for any clarification or support. NLCIL is not liable for any issues faced on GeM portal and it shall be sole responsibility of bidder to resolve the issue through GeM Helpdesk.

10.0 GENERAL TERMS AND CONDITIONS

- i) All the shortlisted bidders for Reverse Auction will be intimated about their eligibility for participation in Reverse Auction through GeM.
- ii) NLCIL reserves the right to reschedule or cancel the Reverse Auction Process / Tender at any time without any notice or assigning any reason thereof.
- iii) NLCIL is not liable for any interruption or delay in accessing GeM Website irrespective of the cause and for any system problems or inability to use the system by the Bidders. Bidders are requested to make all the necessary arrangements / alternatives whatever required so that they are able to circumvent such situation and be able to participate in the reverse auction successfully.
- iv) The Bidder shall not involve himself or any of his representatives in Price manipulation of any kind directly or indirectly by communicating with other suppliers / bidders.
- v) The Bidder shall not divulge either his Bids or any other exclusive details of NLCIL to any other



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party.

- vi) NLCIL reserves the right to cancel this bidding process (e-reverse auction) or extend the due date of receipt of bid(s) without assigning any reason thereof.

11.0 Suspension/Banning

The Bidder will be disqualified for this tender and also would be banned for (2) Two years for the following acts:

- i. Formation of Cartel with other Contractors with a view to artificially hike the prices.
- ii. Willful suppression of facts or furnishing of wrong information or manipulated/forged documents or using other illegal/unfair means.
- iii. If the bidder withdraws/modifies/impairs/derogates his offer on his own after tenders are opened or fails to accept the LOA/fails to submit CPG. Purchaser (NLCIL) would also be at liberty to inform the matter to other PSUs of the Government of India/ Statutory Bodies.
- iv. Any firm which is placed under Suspension/Banning by NLCIL will not be allowed to participate in any tender issued on or after the date of suspension/banning order and also if that firm has already participated in any tender, which is under process their bid will not be considered for further processing.

12.0 OTHERS:

Any Clarifications on the above tender can be had from
THE GENERAL MANAGER / REPP,
CTO OFFICE,
NLC INDIA LIMITED, NEYVELI – 607 801
Cuddalore District, Tamil Nadu.
Phone No: 04142- 214342
Web site: www.nlcindia.in
E-Mail: cgmpbd@nlcindia.in

- 13.0** The quantum of work mentioned in the Schedule is only an indication of the probable quantity that may have to be done during the currency of the contract. NLCIL reserves the right to increase or decrease the quantum of work to suit the site requirements and exigencies and the Contractor shall execute the work on the same terms and conditions and rate throughout the contract period.

- 14.0** NLC India Limited shall not entertain any claim on account of preparation of tenders.



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SECTION-III

TECHNICAL SPECIFICATION OF THE CONTRACT

THREE YEARS OPERATION AND MAINTENANCE OF 65 MW SOLAR POWER PLANT

1.0 INTRODUCTION:

NLC India Limited (NLCIL) has commissioned 65 MW (AC) Grid Interactive Solar Power Plant at Neyveli, Cuddalore District, Tamil Nadu, India. The project DC/AC ratio is 1/1.1.

- 1.1 The project was commissioned on an Engineering, Procurement and Construction (EPC) mode. The land is of flat terrain and firm soiled. The elevation from sea level is around 87m. The area around Neyveli receives wind from eastern coast, average wind velocity ranging from 2.5 to 5.6 m/sec just above earth surface.

The estimated monthly average solar insolation on horizontal plane is as given below, the contractor has to adopt these solar insolation data for their all calculation including for guaranteed net energy export.

Neyveli Site

Description	Jan	Feb	Mar	Apr	May	Jun	Jul	Aug	Sep	Oct	Nov	Dec	Avg.
Insolation, kWh/m ² /day	4.69	5.65	6.37	6.14	5.87	5.32	4.95	5.09	5.29	4.37	3.90	4.09	5.14

Source: NASA Langley Research Centre - Atmospheric Science Data Centre

The project is distributed in two locations within NLCIL's command area adjoining township at Neyveli Block-5 (40 MW) and (25 MW) at Kollirupu village.

The project was commissioned by NLCIL on 31.12.2017 through EPC mode. The EPC contractor was M/s BHEL.

NLCIL intend to engage an O&M agency for carrying out comprehensive operation and maintenance of the 65 MW (AC) Solar Power Plant for THREE YEARS.

Bidder is strictly advised to visit site before submission of their bid. Bidder may contact Site in charge for site visit coordination.

- 1.2 The Operation and Maintenance shall be comprehensive. All preventive/routine maintenance and breakdown/corrective maintenance required for ensuring maximum uptime will have to be provided by the Contractor. Accordingly, the Comprehensive Maintenance shall have two distinct components as described below:

- a. **Preventive/Routine Maintenance:** This shall be done by the Contractor regularly and shall include activities such as cleaning and checking the health of the Solar PV system, cleaning of module surface, tightening of all electrical connections, and any other activity that may be required for proper functioning of the Solar PV system as a whole. Necessary Preventive and Routine maintenance activities for Transformers and



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associated switchgears and civil maintenance activities shall also be included.

- b. **Breakdown/Corrective Maintenance:** Whenever a fault has occurred, the Contractor has to attend to rectify the fault & the fault must be rectified within reasonable time from the time of occurrence/ identification of fault.

2.0 General

- 2.1 The Contractor shall carry out O&M for the entire 65 MW (AC) Solar PV Power Plant including its associated civil structures, power collecting substations (PCSS), Power Exporting Sub Station (PESS) and control room buildings, Array Yard, Garden etc. for a period of THREE YEARS.
- 2.2 Operation work includes day-to-day operation of Solar PV Power Plant including, maintenance of LT, and HT system up to battery limit and maintenance of all Civil Works.
- 2.3 The contractor shall furnish proposed maintenance (preventive) schedule for the operation and maintenance of the power plant.
- 2.4 The maintenance staff for the Solar PV power plant shall be available at all times in the PESS.
- 2.5 The Contractor shall provide his maintenance staff minimum to meet the day-to-day operation and maintenance in 8 hours shift basis.

Note:

- a) The site supervisors shall attend the duty in General Shift regularly. However, if any emergency situation arises, he shall be able to attend the duty in irrespective of time.
- b) The technician should attend the duties for 8 hours' basis in round the clock.
- c) Labours should post in 1st and 2nd shift for carry out the daily maintenance activities like Module cleaning for the entire Quantities of installed solar PV Modules, De-vegetation, Removal of Scraps, Landscaping, Housekeeping, etc.
- d) Security personnel shall be posted for 8 hours shift basis in round the clock.

Plant and Equipment details but not limited to the scope of works.

Sr. No	Equipment Details	40MW SPP	25MW SPP
1.	No of Modules	142080 Nos	88960 Nos
2.	MMS Table	7104 Nos	4448 Nos
3.	SMB	352 Nos	220 Nos
4.	Inverter	32 Nos	20 Nos
5.	Inverter Duty Transformer	16 Nos	10 Nos
6.	PCSS	8 Nos	5 Nos
7.	PESS	1 No	1 No
8.	Outdoor Switchyard Bay	2 No Bay	1 Bay
9.	Auxiliary Transformers	8 Nos	5Nos
10.	DC Battery Charger	8Nos	5Nos
11.	UPS & Its Battery Charger	8Nos	8Nos
12.	SCADA - RIO panel	8 Nos	5Nos
13.	33KV Switchgear in PCSS	8Nos	5Nos
14.	Master SCADA	1No	1 No



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15.	LT Panel	8Nos	5Nos
16.	SVS	8Nos	5Nos
17.	ACDB	8Nos	5Nos
18.	Input Isolation Panel	8Nos	5Nos

- 2.6 The contractor shall maintain attendance register for all their staff deployed for carrying out jobs on regular basis and shall be produced for verification and billing to an authorized personal of NLCIL.
- 2.7 The contractor shall ensure that all safety measures are taken at the site to avoid the accidents to his employees or his subcontractor employees.
- 2.8 In order to ensure longevity, safety of the core equipment and optimum performance of the system, the contractor shall use only genuine spares of high quality standards.

3.0 SCOPE OF WORK

- 3.1 The Contractor shall provide his operation and maintenance staff at the Solar Power Plant, and PESS for day-to-day operation and maintenance. The operation and maintenance personnel shall be qualified, certified by competent authorities and well trained so that they can handle any type of operational hazards quickly and timely. The responsibility of providing suitable Personal Protection Equipments rests solely with the Contractor.
- 3.2 The security of the Solar Power Plant and PESS will rest with the Contractor, till such time, the operation and maintenance of the power plant and its auxiliaries have been taken over by NLCIL. The Contractor shall have to restore/replace the equipment/asset/plant/system in original form at their own cost, in case of any incidence of theft/damage during their O&M period. A monthly report on the security aspects like incidents of theft, local agitations, strikes etc. shall be submitted to NLCIL. If the contractor fails to replace such items, NLCIL will replace at the risk and cost of the contractor.
- 3.3 The maintenance personnel shall be in a position to check and test all the equipment regularly, so that, preventive maintenance, could be taken well in advance to save any equipment from damage. Abnormal behaviour of any equipment shall be brought to the notice of NLCIL not later than 2 hours for taking appropriate action.
- 3.4 All repairing & replacement works are to be completed by the Contractor within reasonable time from the time of occurrence of fault or defect. If it is not possible to set right the equipment within reasonable time, the Contractor shall notify NLCIL indicating nature of fault & cause of damage etc. within 12 hours from the time of occurrence of the fault.
- 3.5 During operation and maintenance, if there is any loss or damage to any component of the power plant due to mis-management/ mis-handling or due to any other reasons, what so ever, the Contractor shall be responsible for immediate replacement/ rectification of the



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same. The damaged component may be repaired, if it is understood after examination that after repairing performance of the components shall not be degraded, otherwise the defective components shall have to be replaced by new one without any extra cost to NLCIL.

3.6 The scope of maintenance work shall include the following:

- 3.6.1 Regular operation and maintenance of the Solar PV Power Plant and including water supply system and submission of daily performance data of the power plant. The Contractor shall maintain log book in this respect to clearly record the date of checking & comments for action taken etc.
- 3.6.2 The scope of operation and maintenance includes equipments up to Solar Power Plant. Proper records of operation of Power Plant System are to be kept as per direction of NLCIL.
- 3.6.3 Cleaning of the Power Plant including array yard on regular basis.
- 3.6.4 Normal and preventive maintenance of the Power Plant such as cleaning of module surface, maintenance of pyranometers, tightening of all electrical connections, Line accessories, Transformers and associated switchgear.
- 3.6.5 Contractor shall perform minimum 2 module cleaning cycles monthly, however the NLCIL can instruct to increase the cleaning frequency based on module soiling condition.
- 3.6.6 Keeping & recording daily log sheet as per approved format for the Power Plant and the same to be submitted to the Site Incharge every month.
- 3.6.7 Under no circumstances, the operator shall run the power plant damaging the substation or grid.
- 3.6.8 Contractor employees shall use no part of the power plant building for residential or any other purpose except for running the plant.
- 3.6.9 The Contractor shall submit monthly Performance report of Solar PV Power Plant indicating cumulative energy export data as per approved format within three days of the following month. The reporting shall also include any mismatch or abnormality in the performance of the power plant based on SCADA details review.
- 3.6.10 The Contractor shall preserve all recorded data in either manual or through computer format and shall submit to NLCIL every month.
- 3.6.11 During operation and maintenance period, the Contractor shall maintain the fire extinguishers as per manufacturer's recommendation.
- 3.6.12 Plant Data transfer and Communication to NLCIL shall be in scope of Contractor. All latest Cyber security protocols shall be ensured by Contractor.
- 3.6.13 Any work as per O&M contract or communicated by NLCIL shall be done as per



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schedule of O&M or as per schedule communicated, in case of delay in any activity NLCIL shall have right to start the work on risk and cost of contractor after giving a notice.

- 3.6.14 All those works which are not specifically specified in the contract but are required to carry out the safe and efficient operation of the plant then that work shall also be deemed to be included in the scope of work of the O&M Contractor. The decision of NLCIL shall be final and binding on all matters.

4.0 TOOLS AND TACKLES

- 4.1 Tools and tackles is not a supply item. A list of tools and tackles which are required for O & M as per **Annexure 1** shall be maintained by the Contractor for use during the O & M period and the same can be taken back by the Contractor after completion of O & M period. The Contractor shall maintain all regular operation and maintenance tools apart from the tools and tackles listed in Annexure 1.

5.0 TESTING INSTRUMENTS FOR ELECTRICAL & ELECTRONICS

Contractor will provide all details of onsite testing instruments / equipments. Details of equipment/instrument, make, numbers, range, accuracy, etc shall be furnished to NLCIL.

6.0 SCOPE OF CIVIL MAINTENANCE

- 6.1 Cleaning of surface drain, sewerage line, drainage outfall, down pipes, soil pipes, water pipe lines.
- 6.2 Repairing or replacement, whatever necessary, and cleaning of all joineries in the Pre Engineered Building of PCSS as and when necessary.
- 6.3 Repairing or replacement, whatever necessary, of doors, window fixtures, toilet accessories, etc in PESS and other buildings as and when necessary.
- 6.4 Cleaning & maintaining of power plant area clearing all weeds, leaves and other wood rejects.
- 6.5 Painting of iron parts of array structures posts once in a year.
- 6.6 Painting of PCSS, PESS, Security room, compound wall, fencing, gates, etc once in two years.
- 6.7 All minor repair maintenance in case of buildings and all other structures as and when required as per the instructions of NLCIL Site Incharge.
- 6.8 Housekeeping: House Keeping and Cleaning of the plant, office building, watering of plants (maintenance and up keeping of horticulture) on regular basis.



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7.0 OTHERS

Any Electrical /Civil maintenance work which are not mentioned or included here but necessary for the longevity of the plant shall be carried out by the Contractor.

In the case of cable fault/failure the jointing work will be taken by the contractor at his own cost.

8.0 ELECTRICAL ENERGY EXPORT DURING THE CONTRACT PERIOD

- a) Guaranteed annual generation shall be the values mentioned in **Annexure 2** for the contract duration. The penalty will be imposed @ Rs.4.5/kwh for loss of generation with reference to Base net energy on annual basis. Calculation procedure is given in **Annexure 3**. However, the penalty will not be imposed, if the contractor achieves the annual guaranteed net energy export. No incentive will be paid.
- b) Other than Solar radiations no other factor will be considered for calculating Base generation. Year wise guaranteed energy output to grid is given in the **Annexure 2** which was arrived considering month wise Global solar insolation, which has to be read as accepted month wise generation based on which Base generation will be calculated.
- c) The bidder has to adopt accepted month wise power generation from the solar power plant for 3 years along with corresponding average monthly Global Solar radiation considered. This month wise accepted power generation data with correction as applicable based on actual solar radiation data will be used as “Base Generation” for considering the following:
 - i) For certifying the monthly/quarterly/annual payment during operation and maintenance period of three (3) years.
 - ii) For certifying final payment at the end of Operation and Maintenance period.
The format for computation of “Base Generation” applying actual measured Solar Radiation values is given in **Annexure 3** enclosed with this Specification.
- d) Calibrated Pyranometers are installed NLCIL. Periodical calibration of Pyranometers not exceeding twelve (12) months duration shall be carried out and records have to be maintained by the contractor for total contract period.
- e) “Exported Energy” from the Solar PV Power Plant supplied by the Contractor shall be noted monthly for all contract durations. For this purpose, the net energy exported at the 33kV outgoing feeder in Power Export Sub Station shall be taken into account.
- f) “Base Generation” for a month is computed by correcting the accepted month wise generation by the bidder in the Technical formats with a factor taking into account the actual average global solar radiation measured by the calibrated Pyranometer for the months at step-d. The procedure for computation of “Base Generation” is detailed in **Annexure 3** enclosed with the specification.



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d) The measured value of exported energy at step-e shall be compared with the “Base Generation” for arriving at the shortfall for the month. Sum of the monthly short fall during one (1) year period shall be the annual shortfall based on which the penalty for performance will be levied.

g) Following factors shall be considered while computing the “Base Generation”

i) Actual radiation at site

ii) Generation loss due to grid outage (or power evacuation cable system / power receiving sub-station systems which are not in the scope of the bidder), the measured global solar radiation of the period for the outage of the power evacuation system shall be excluded to calculate average global solar radiation for the month.

NOTE: : Few faults have been identified by NLCIL while taking over the plant from the EPC contractor. Identified faults will be rectified by NLCIL and a confirmation letter will be issued to the contractor. Penalty for loss/shortfall of generation with reference to Base generation on annual basis will be applicable from the date of issue of the confirmation letter by NLCIL.

9.0 EXCLUSIONS:

Scheduling & Forecasting services - This service is excluded from the scope of contract but contractor shall keep updated NLCIL and its forecasting agency (QCA) about available capacity of plant and local weather conditions during all days. The contractor should co-ordinate for sharing Data under the QCA and REMC.

All consumables like string cable, fuses will be in the scope of the contractor. If the failed/faulty items cost is more than 1 lakh, it will be procured by NLCIL, but will be erected by the contractor.

10.0 TIME SCHEDULE.

The time schedule for operation and maintenance shall be for a period of **THREE YEARS** from the date of handing over of the site.

11.0 TERMS OF PAYMENT.

The O & M charges quoted shall be paid on pro-rata, on quarterly basis on certification of work by the Project Manager at the end of every quarter.

The payment of contract price shall be regulated and paid as per Lump sum price quoted for O&M for total 3 years.

Total price shall be divided equally and paid for three years.

90 % of the yearly price will be divided in quarterly installments and paid quarterly after



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getting HR clearance and certification of work by NLCIL site in charge on receipt of invoice/ bill.

Balance 10 % of the yearly payment will be made at the end of 12 months after calculating the short fall/ excess generation as per the terms and conditions. In case, where the penalty amount is more than the 10% of yearly price, the amount will be recovered from any payment due/ up-coming bills/Performance Guarantee/Security Deposit.

Quarterly payments shall be made from the 90% of the yearly price on pro-rata basis with reference to NLCIL approved Billing Break-up for O & M activities at site. Amount from Quarterly Bills shall be deducted proportionately for any lapses on the part of execution of works at site in line with approved work schedule. For such deductions, Billing Break-up shall be taken as reference.

GST (Goods and Service Tax) : Contactor has to furnish the GST Registration / Provisional ID number with relevant documentary evidence. Contractor has to comply with the GST Act/ Rules.

NLCIL reserves the right to short close / extend the contract due to special circumstances.

12.0 SECURITY DEPOSIT:

- 12.1 The Security Deposit shall be 5% (Five percent) of the Contract value pertaining to Schedule –I. In case, the Contractor has quoted freak rates, i.e., more than (-) 25%, an additional Security Deposit of 5% will be levied over and above the said 5% Security.
- 12.2 In the case of Successful Tenderer, the Earnest Money Deposit, if furnished in the form of BC / PO / DD / e-Payment, it shall be converted into initial Security Deposit. Further in every bill 10% (Ten percent) shall be recovered and kept as Additional Security Deposit (ASD) until the Security Deposit becomes 5% (Five percent) (10% in case of freak rates) of the value of the Contract pertaining to Schedule-I.
- 12.3 The Earnest Money Deposit, if furnished as Bank Guarantee, shall be discharged to the Successful Tenderer within 07 days upon confirmation & acceptance of Security Deposit before the signing of contract. If the Contractor is not willing to pay the entire Security Deposit of 5% (or 10% in the case of freak rate quoting) in a single installment before signing the agreement, the above procedure of deducting ASD in the running bills will be resorted to. It may be limited to 2 or 3 installments only.
- 12.4 In case of MSE, they have to remit ISD/SD in the form of BC / PO / DD / e- Payment/ BG. If MSE firms happen to be a successful tenderer, the EMD amount mentioned, if any, in the Tender Enquiry is to be remitted towards Initial Security Deposit (ISD) before the issue of Letter of Award (LOA) within the stipulated days from the date of intimation.
- 12.5 In case of enhancement of contract value, value of Security Deposit is also to be increased proportionately.



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- 12.6 The security deposit shall be kept valid upto the finalization of the agreement or upto the period of six months from the actual date of completion whichever is earlier, provided there is not liability on the part of the contractor.
- 12.7 The Security Deposit shall not bear any interest.
- 12.8 If the Contract period is extended at the request of NLCIL the Contractor need not deposit additional SD for the revised value of the contract consequent to the said enhancement and the SD furnished by the Contractor shall be retained as per the terms of the Contract. After completion of 6 months, the value of SD can be reduced to 5% of the value of enhanced portion of Schedule I only and such SD shall be kept valid till the finalization of the Contract or six months from the actual date of completion, whichever is earlier, provided there is no liability on the part of the Contractor.
- 12.9 In the case of BG furnished towards Security Deposit, the same shall be executed by the banker on a non-judicial stamp paper of value not less than Rs.100/- . The bidder shall ensure that the issued BG shall be verifiable under SFMS mode.

NOTE: Total value of contract is applicable if schedule-I value is not shown separately.

13.0 OPERATION & MAINTENANCE CHARGES.

- a) The O&M charges shall be inclusive of taxes and duties as applicable. But any increase in taxes, levies/fees or newly imposed taxes, etc, would be reimbursed extra (with submission of documentary proof from concerned authority). Similarly, due credit would be given to NLCIL in case of withdrawal or reduction in applicable taxes/fees/duties.
- b) Payment will be made after all statutory deductions as applicable to such type of contracts. The rate quoted shall deem to be inclusive of all salaries and other cost, expenses of employees, cost of spares, cost of repair/replacement/ modification of any equipment or system for the entire quoted period of THREE YEARS. The rates are also inclusive of tools & tackles, etc. and liabilities of every description and all risk of every kind to be taken in operation, maintenance and handing over the plant to NLCIL by the contractor.

14.0 MODE OF PAYMENT

All Payments in Indian Rupees shall be made direct to the Contractor through E-payment. For effecting E-Payment, Contractor shall furnish necessary details to the Purchaser. All bank charges shall be to the account of the Contractor.

15.0 WORKMAN COMPENSATION INSURANCE.

Workman compensation insurance shall be obtained for the entire contract period.



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ANNEXURE 1

TOOLS AND TACKLES

Tools and Tackles are not supply items. Tools and Tackles which are required for O & M are to be supplied by the Contractor for use during the O & M period and the same can be taken back by the Contractor after completion of O & M period.

Sl. No	Item Description	Unit	Quantity
1	Insulation tester 500V (Megger)	No.	1
2	Digital Tong tester	No.	1
3	Digital Multi-meter with Graphic display	No.	1
4	Tool box with D / Ring spanner sets, socket wrench with sockets, insulated cutting & nose pliers, insulated screw drivers, pipe wrenches, Allen key wrench set, MS files, hammer, crowbar, steel tape, etc.	No.	1
5	Crimping tool (2.5 to 240sq mm)	Set	1
6	Insulation stripper	Set	1
7	Analog multi meter	No	1
8	Analog tong tester (AC/DC)	No	1
9	Torque Wrench	Nos.	2
10	Fuse pullers of each type	No.	5
11	PV Array Tester	No.	2
12	Solar Module Cleaning Kit	No.	4

MANDATORY SPARES

Sl. No	Item Description	Unit	Quantity
1	String monitoring fuses	Nos	100
2	DC Cables	Meters	100 Meters of each size , rating and type
3	HRC Fuses	Nos	10% of each type & rating
4	Light fittings and bulbs	Nos	10% of each type
5	Cable lugs and plugs	Nos	5% of each type



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ANNEXURE 2

**Guaranteed Month-wise NET Energy Export of the project at 33 KV outgoing feeders in
metering stations of NLC take off point**

Sl. No.	Average Global Radiation on horizontal surface considered (kWh / M ² / Day) Month- wise.		Estimated year wise Generation in MU			
			2025	2026	2027	2028
1	January	4.69	8.98	8.89	8.79	8.69
2	February	5.65	9.22	9.12	9.02	8.92
3	March	6.37	10.48	10.37	10.26	10.15
4	April	6.14	9.35	9.25	9.15	9.05
5	May	5.87	9.41	9.31	9.21	9.11
6	June	5.32	8.26	8.17	8.08	7.99
7	July	4.95	7.95	7.86	7.78	7.69
8	August	5.09	8.20	8.12	8.03	7.94
9	September	5.29	8.22	8.13	8.04	7.95
10	October	4.37	7.50	7.42	7.34	7.26
11	November	3.90	6.84	6.77	6.69	6.62
12	December	4.09	7.96	7.87	7.78	7.70
	Annual		102.37	101.27	100.17	99.07



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ANNEXURE-3

COMPUTATION OF LOSS IN GENERATION DURING O & M AND COMPENSATION PAYABLE TO NLCIL ON ANNUAL BASIS

O & M activity Month	Average Global Solar Radiation for the month (KWHr / SQ.M / DAY)	Estimated Power Generation during O & M - for corresponding month in 1 st / 2 nd / 3 rd year In MU.	Measured average Global Solar Radiation of the month at site by Pyranometer (KWHr / SQ.M / DAY)	Measured Monthly Exported Energy at PESS interface point in MU.	Base Generation For the month in MU	Loss in Generation for the month in MU.
	(a)	(b)	(c)	(d)	(e) = (b) x (c)/(a)	(f) = (e) – (d)
Month 1						
Month 2						
Month 3						
Month 4						
Month 5						
Month 6						
Month 7						
Month 8						
Month 9						
Month 10						
Month 11						
Month 12						

Total +/- (in Million Units)

i) Rate of Compensation for loss in Generation : Rs. 4.5 / KWHr

ii) Loss in generation per Annum : Sum of (f) x 1000000 kWHr.

iii) Compensation payable for the month, Rs: Item (i) x Item (ii)

Note: 1. Penalty is payable for annual shortfall in generation; No Incentive for excess generation.

2. Few faults have been identified by NLCIL while taking over the plant from the EPC contractor. Identified faults will be rectified by NLCIL and a confirmation letter will be issued to the contractor. Penalty for loss/shortfall of generation with reference to Base generation on annual basis will be applicable from the date of issue of the confirmation letter by NLCIL.



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SECTION-IV **SCOPE OF WORK**

OPERATION AND MAINTENANCE (O&M)

1.1 GENERAL

NLCIL requires operation and Maintenance of 65 MW (AC) Grid Interactive Solar Power Plant at Neyveli, Cuddalore District, Tamil Nadu, India for a period of 3 years as per below said terms and conditions and scope of work.

- 1.1.1 The Contractor shall carry out O&M activities for the entire Solar PV Power Plant including its associated civil structures, approach roads, Power export substation and control room buildings, Gate complex, Security Buildings, Garden etc. The O & M activities also includes the entire power evacuation system comprising of transmission lines (overhead & underground)/ towers en route to the Grid Connecting substation, extension bays & allied equipments in the connecting substation till the terminal point of connectivity etc. for a period of 3 years. This scope of responsibility also applies to the case of sharing of the transmission lines and related infrastructures with other party(ies) up to the Grid Connecting substation
- 1.1.2 Operation work includes day-to-day operation of Solar PV Power Plant including the power evacuation system, maintenance of LT, and HT system up to the terminal point of grid connectivity and maintenance of all Civil Works. In case of sharing of the transmission lines for power evacuation with some other party(ies), the responsibility of ensuring uninterrupted power export from the solar PV power plant lies with the contractor or else it will attract penalty/loss of compensation as per relevant clauses on the contractor.
- 1.1.3 The contractor shall furnish proposed maintenance (preventive) schedule for the operation and maintenance of the power plant including the complete power evacuation system up to the point of grid connectivity for the contract period of 3 years.
- 1.1.4 The maintenance staff for the Solar PV power plant including the power evacuation system shall be available at all times in the plant premises.
- 1.1.5 The contractor shall maintain attendance register for all their staff deployed for carrying out jobs on regular basis and shall be produced for verification on demand by authorized personnel of NLCIL.
- 1.1.6 The contractor shall ensure that all safety measures are taken at the site to avoid the accidents to his employees or his subcontractor employees.
- 1.1.7 In order to ensure longevity, safety of the core equipment and optimum performance of the system, the contractor shall use only genuine spares of high quality standards.
- 1.1.8 The O&M charges as per price schedule is inclusive of replacement of parts/equipment's, spares, consumables, etc.



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1.2 SCOPE

- 1.2.1 The Contractor shall provide his operation and maintenance staff for the entire Solar Power Plant including the power evacuation system for day-to-day operation and maintenance. The operation and maintenance personnel shall be qualified, certified by competent authorities and well trained so that they can handle any type of operational hazards quickly and timely. The responsibility of providing suitable Personal Protection Equipments rests solely with the Contractor.
- 1.2.2 The security of the Solar Power Plant including power evacuation system will rest with the Contractor, till such time, the operation and maintenance of the power plant and its auxiliaries have been finally taken over by NLCIL after completion of the contract period.
- 1.2.3 The maintenance personnel shall be in a position to check and test all the equipments regularly, so that, preventive maintenance, could be taken well in advance to save any equipment from damage. Abnormal behavior of any equipment shall be brought to the notice of NLCIL not later than 2 hours for taking appropriate action.
- 1.2.4 All repairing & replacement works are to be completed by the Contractor within reasonable time from the time of occurrence of fault or defect. If it is not possible to set right the equipment within reasonable time, the Contractor shall notify NLCIL indicating nature of fault & cause of damage etc. within 12 hours from the time of occurrence of the fault.
- 1.2.5 During operation and maintenance, if there is any loss or damage to any component of the power plant and the evacuation system due to miss-management/ miss- handling or due to any other reasons, what so ever, the Contractor shall be responsible for immediate replacement / rectification of the same. The damaged component may be repaired, if it is understood after examination that performance of the components shall not be degraded after repairing, otherwise the defective components shall have to be replaced by new one without any extra cost to NLCIL.
- 1.2.6 The scope of maintenance work shall include the following:
 - 1.2.6.1 Regular operation and maintenance of the Solar PV Power Plant and Power Evacuation System including water supply system and submission of daily performance data of the power plant. The Contractor shall maintain log book in this respect to clearly record the date of checking & comments for action taken etc.
 - 1.2.6.2 The scope of operation and maintenance includes all equipments/accessories of the Solar



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Power Plant and the Power Evacuation System up to the Grid Connecting Substation. Proper records of operation of the entire Power Plant System are to be kept as per direction of NLCIL.

- 1.2.6.3 Cleaning of the Power Plant including array yard on regular basis.
- 1.2.6.4 Normal and preventive maintenance of the Power Plant including power evacuation system such as cleaning of module surface, tightening of all electrical connections, Line accessories, Transformers and associated switchgears, Circuit Breakers, protective equipments at extension bays etc.
- 1.2.6.5 Keeping & recording daily log sheet as per approved format for the Power Plant System.
- 1.2.6.6 Under no circumstances, the operator shall run the power plant damaging the substation or grid.
- 1.2.6.7 Contractor employees shall use no part of the power plant building for residential or any other purpose except for running the plant.
- 1.2.6.8 The Contractor shall submit monthly Performance report of Solar PV Power Plant indicating cumulative energy export data as per approved format within three days of the following month. The reporting shall also include any mismatch or abnormality in the performance of the power plant based on SCADA details review. Day to day coordination with Tamilnadu State Electricity authorities and sending details required by them are also under the scope of the O & M contract.
- 1.2.6.9 The Contractor shall preserve all recorded data in either manual or through computer format and shall submit to NLCIL every month.
- 1.2.6.10 The Contractor shall maintain the garden, as per landscaping including daily watering and manuring as and when necessary and on regular basis.
- 1.2.6.11 During operation and maintenance period, the Contractor shall refill the fire extinguishers as per manufacturer's recommendation before expiry.

1.3 TOOLS AND TACKLES

- 1.3.1 Tools and tackles is not a supply item. A list of tools and tackles which are required for O&M of the solar power plant including the power evacuation scheme shall be maintained by the Contractor for use during the O & M period and the same can be taken back by the Contractor after completion of O & M period. The Contractor shall maintain all regular/special O&M tools apart from the tools and tackles.



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- 1.3.2 Such special tools used by the contractor during operation and maintenance period shall be handed over to NLCIL for further use at the time of completion of O&M period.
- 1.4 TESTING INSTRUMENTS FOR ELECTRICAL & ELECTRONICS**
- 1.4.1 Contractor shall provide all details of onsite testing instruments / equipments. Details of equipment / instrument, make, numbers, range, accuracy, etc shall be furnished to NLCIL.
- 1.5 SCOPE OF CIVIL MAINTENANCE**
- 1.5.1 Cleaning of surface drain, sewerage line, drainage outfall, down pipes, soil pipes, water pipe lines.
- 1.5.2 Repairing or replacement, whatever necessary, and cleaning of all joineries in the Pre Engineered Building of PCSS as and when necessary.
- 1.5.3 Repairing or replacement, whatever necessary, of doors, window fixtures, toilet accessories, etc in PESS and other buildings as and when necessary.
- 1.5.4 Cleaning & maintaining of power plant area clearing all weeds, leaves and other wood rejects. Vegetation removal inside the power plant and also vegetation removal & cutting of trees/branches en route the transmission lines of the power evacuation system up to Grid Connecting substation on periodical basis as directed by NLCIL.
- 1.5.5 All minor repair maintenance in case of buildings and all other structures as and when required as per the instructions of Project Manager/NLCIL.
- 1.6 OTHERS**
- 1.6.1 Any Electrical /Civil maintenance work which are not mentioned or included here but necessary for the longevity of the plant shall be carried out by the Contractor.
- 1.7 On completion of Operation and Maintenance period, the plant will be handed over to NLCIL. During the final handing over of the works, the Contractor shall submit the following to consider final payment.
- i) Inventory of spares at project site.
 - ii) Plant performance report for the O & M period.
 - iii) Replenishment of any spares consumed in the course of operation and maintenance of plant during the 3 years O&M period.



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SECTION-V
SAFETY CODE FOR THE CONTRACTOR

GENERAL

- 1.00 Safety is the responsibility of every employee individually and collectively.
- 1.01 The Contractor shall submit Safety Code and handed over a copy to all sub- Contractors working under his control and he should in turn display all rules on the office notice board for the benefit of all the men working under him.
- 1.02 The Contractor shall provide adequate guards, illumination, fencing and watching wherever necessary at the construction site & working area, for the safety & convenience of public or others.
- 1.03 When work is to be done near any place, where there is risks of drowning, arrangements to be made for safe barricading of such areas. All necessary equipment shall be provided and kept ready for use and necessary steps taken for prompt rescue of any person in danger and adequate provision shall be made for prompt first-aid treatment of all injuries likely to be sustained during the course of the work in case of mishap.
- 1.04 To ensure effective enforcement of the rules and regulations relating to safety precautions, the arrangements made by the Contractor shall be open to inspection by the Safety Engineer, the Labour Officer, Engineer-in-charge of the department or their representatives.
- 1.05 Notwithstanding the above clauses, there is nothing in those to exempt the Contractor from the operation of any other Act or Rule in Republic of India for the safety of men and materials.
- 1.06 An injury sustained in the plant, must be reported to the nearby First-Aid Station no matter how slight it is, the injured person will inform Supervisor/Officer in-charge.
- 1.07 In case of a fatal accident, the Contractor must inform the Engineer in-charge and report in writing should be made in the form.
- 1.08 Smoking or keeping of naked light is strictly prohibited near gas lines, valves and any other equipment connected with the gas distribution.
- 1.09 Smoking and carrying of matches, lighters and other spark producing devices is strictly prohibited within the area where inflammable liquids are stored, handled or used or where loading or unloading operations are performed. Any tank or container containing flammable liquid should be properly grounded for preventing ignition due to static electricity spark. Contractor should ear-mark such areas and provide necessary warning signals.
- 1.10 Contractors should ensure that employees do not come to work while still under the influence of intoxicants. Any employee found on duty under the influence of liquor or of intoxicating drugs, will be liable to severe disciplinary action.



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- 1.11 Work surrounds should be kept clean, free from oil, grease and other obstructions or fallen objects like nuts bolts etc.
- 1.12 After a job or work is completed, all left-over junk and other scrap materials should be cleared from the area immediately.
- 1.13 Drums or other make-shift arrangement must not be used in place of ladders or as work benches or supports for any job.
- 1.14 Employees must not walk through or across any systems that is brought into operation unless their duties require them to do so or they are authorised to do so.
- 1.15 Compressed air should not be used for removing dust from one's clothes. Compressed air should not be blown against anyone as it may injure or even kill him.
- 1.16 If an employee, in the course of his work, encounters condition of unusual hazard with which he is not familiar, he should contact the supervisor for advice before proceeding further. He should also inform the Contractor as well as the Engineer in-charge.
- 1.17 Contractors should particularly ensure that they or their employees do not meddle with any equipment and see that they keep away from such equipment.
- 1.18 It should be ensured that no one takes rest/shelter below any under cut pit/excavation or near any stock of materials or under Solar PV arrays.
- 1.19
 - i For any work involving repair & maintenance underground work the Contractor shall follow the safety procedural orders/instruction issued by the Purchaser.
 - ii The Contractor shall exercise supervision of such jobs by competent persons within the meaning of factories act & rules.
 - iii All persons engage on such jobs shall have to have before hand proper training instructions as required under Factories Act & Rules.
- 1.20 Contractor has to caution his employees at site against the associated hazards. If considered necessary, he shall arrange for a properly equipped team for taking care of contingencies.

2.00 SAFETY MEASURES IN CONTRACTUAL WORK

Whereas, it is necessary to take steps to ensure safety at work sites by the executing contractual agency, it is incumbent of the Purchaser to introduce all measures to guide, induce, train and bind the agencies concerned to adopt remedial steps to prevent accidents. Problem gets aggravated in contractual zones due to lack of training, in-adequate supply of personal protective equipment, shortage of skilled labour changing deployment of works etc. Accordingly, the following measures are intended to be introduced and the salient clauses will be included in the contract documents.

- 2.01 The Contractor shall take all safety precautions and provide adequate supervision in order to carryout the job safely and without damage to equipment.



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- 2.02 The executing department would take necessary shut-downs wherever there are hazards of gases, electricity, moving machinery etc. The Contractor shall ensure that the shut-down/clearance are taken before sending workers to such locations.
- 2.03 The Contractor shall supply safety appliance like shoes, safety belts, ladies chappals, helmets, gloves etc. to his workers depending on working conditions and Life saving jackets shall be kept in readiness always at the site. The Contractor shall not deploy any workmen without safety boot and safety helmet and the safety applicable to the specific work conditions.
- 2.04 Before starting the day's job, the Purchaser's Supervisor/representatives will ensure that safety briefing has been done to the Contractor's supervisor who has been imparted safety induction earlier.
- 2.05 HOD/Zonal in-charge will nominate Engineer in-charge of the contractual work under reference who will be fully responsible for the safe execution of the work at site.
- 2.06 The Contractor shall abide by the provisions of Factories Act, State Factory Rules, Workmen's Compensation Act, Payment of Wages Act, Contract Labour (Regulation) Act etc. and keep the Purchaser indemnified of provisions of the above Acts and Rules.
- 2.07 The Head of Deptt. Executing the contract upon the satisfaction that the Contractor is not conforming to the Safety requirements may direct stoppage of work and require the Contractor to remedy the defects. The Contractor shall not proceed with the work until he has complied with each direction to the satisfaction of such Head of the Department.
- 2.08 The Contractor shall be fully responsible for accidents caused due to him or his agents or workmen's negligence or carelessness in regard to the observance of the safety requirements and shall be liable to pay compensation for injuries.
- 2.09 Without prejudice to the right conferred by the clause 2.08 above for stoppage of work for violations of safety requirements the Contractor shall be liable for penalty as deemed fit for violation of safety rules & regulations upto first two instances. For the third violation he shall be liable to be debarred from further contracts upto a period of one year from the date of issue of debarring notice.
- 2.10 The Head of the Safety Engg. Deptt. Or the Head of the Deptt. Executing the contract will assess the penalty amount having regard to the circumstances, in particular, the nature and gravity of the violation. After issuing a notice to the Contractor to show cause why the amount specified therein shall not be imposed as a penalty and considering the cause shown by the Contractors, if any, he shall pass final orders which shall then be final and binding on the Contractor. The penalty amount will be recoverable from any bill and/or EMD/SD of the Contractor without any further reference to him.
- 2.11 Whenever work, at height is involved, Contractor must obtain height passes from Safety Engg. Deptt. For those persons required to do work at height.
- 2.12 Contractor must ensure all the workmen against "Workmen Compensation Act."



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SECTION-VI
GENERAL TERMS & CONDITIONS

1.0 DEPLOYMENT OF QUALIFIED TECHNICAL STAFF IN EXECUTION:

- 1.1 The Contractor shall engage required qualified & trained persons for the above O&M works. The entire work shall be supervised by a B.E Degree Holder with experience in similar nature of works.
- 1.2 The Contractor shall see that one of the technically qualified persons is always available at the site of work, during working hours, to check all items of work.

2.0 SUSPENSION OF WORK:

- 2.1 NLCIL give directions from time to time in writing for any valid reasons, without in any way violating this contract, to the Contractor to suspend the work or any part thereof. The Contractor shall suspend the work till such time as indicated by NLCIL. The Contractor shall not, after receiving such written notice proceed with the works therein ordered to be suspended until he shall have received written notice or authority to the effect from the NLCIL.

3.0 INSPECTION OF WORKS:

- 3.1 The Purchaser or his duly authorized person shall have at all times, full power to inspect the Solar PV Power Plant where the Contractor is carrying out the Operation and Maintenance. The Contractor shall properly carry out the written instruction issued by the NLCIL.

4.0 TOOLS & TACKLES SPARES AND CONSUMABLES:

- 4.1 The Contractor shall arrange tools and tackles, spares, and consumables required for the Operation & Maintenance of the Solar PV Plant. .

5.0 ASSIGNMENT AND SUBLETTING OF CONTRACT:

- 5.1 The Contractor shall not sublet, transfer or assign the contract or any part thereof without the written permission of NLC. In the event of the Contractor contravening this condition Owner shall be entitled to entrust the work to other agencies at the Contractor's account and risk. The Contractor shall be liable for any loss or damage which the Corporation may sustain in consequence of or arising out of such replacing the contract notwithstanding any such permission to sublet, the Contractor shall always be held responsible for the due fulfillment of the terms and conditions of contract.

6.0 REGULATION OF LOCAL AUTHORITIES & STATUTES:-

- 6.1 The Contractor shall ensure compliance with all statutes, laws, rules and regulations of the



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Central or State Governments or any other authority such as the Workmen's Compensation Act 1923, Payment of Wages Act, Minimum Wages Act - 1948 Employees State Insurance Act, Employees Provident Fund Act, Mines Act Indian Electricity Rules 1956, the Contract Labour and Regulation Act etc. and the general rules there-under any and all statutory modifications thereof in connection with employees engaged by him or his Sub-Contractors in the work.

6.2 The Contractor shall arrange to give all notices required by the said Acts, Regulations or Bye-laws to be given to any authority or to any Public Officer and pay all fees that may be properly chargeable in respect of the 'works' and lodge the receipts with NLC, Obtaining all permits and licenses required thereupon is the responsibility of the Contractor.

6.3 All registration and statutory inspection fees, if any, in respect of his work pursuant to this 'Contract' shall be to the account of the Contractor.

7.0 NLCIL'S LIEN ON EQUIPMENT:-

7.1 No material brought to the "site" shall be removed from the "site" by the Contractor and/or his Sub- Contractor without the prior written approval of NLCIL.

8.0 CO-OPERATION WITH OTHER CONTRACTORS-

8.1 The Contractor shall co-operate with all other Contractor's or tradesmen of NLCIL who may be performing other works on behalf of the NLCIL and the workmen who may be employed by NLCIL and doing work in the vicinity of the works under their respective contracts. The Contractor shall also so arrange to perform his work as to minimize, to the maximum extent possible interference with the work of other Contractor's and his workmen. NLCIL shall determine the resolution of any difference of conflict that may arise between the Contractor and other Contractor or between the Contractor and the workmen of NLCIL in regard of their work. If the works of this Contractor is delayed because of any acts or omissions of another Contractor, the Contractor shall have no claim against NLCIL on that account other than an extension of time for a completing his works.

9.0 DISCIPLINE OF WORKMEN:

9.1 The Contractor shall adhere to the disciplinary procedure set by NLCIL in respect of his employees and workmen at 'Site'. NLCIL shall be at liberty to object to the presence of any representative or employee of the Contractor at the 'Site' if in the opinion of NLCIL such employee has misconducted himself or be incompetent or negligent or otherwise undesirable and then the Contractor shall promptly remove such a person objected to, and provide in his place a competent replacement at his own expenses.

10.0 MANPOWER REPORT:-

10.1 The Contractor shall submit to NLCIL on the last week of every month, a man-hour schedule for the next month, detailing the man hours scheduled for the month, skill wise and area wise.



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- 10.2 The Contractor shall also submit to NLCIL on the 7th day of every month, a manpower report of the previous month detailing the number of persons scheduled to have been employed and actually employed, skill-wise and the areas of employment of such labour.
- 10.3 The Contractor shall also submit periodically such of the reports as NLCIL may call for from time to time.
- 11.0 **FIRE PROTECTION: -**
- 11.1 The work procedures that are to be used during the maintenance shall be those, which minimize fire hazards to the extent practicable. Combustible materials, combustible waste and rubbish shall be collected and removed from the 'Site' at least once a day.
- 11.2 The Contractor shall provide enough fire protection equipment of the types and number for the warehouses, office, temporary structures etc. Access to such fire protection equipment shall be easy and kept open at all times.
- 12.0 **SECURITY:-**
- 12.1 The Contractor shall have total responsibility for all equipment and materials in his custody. The Contractor shall make suitable Security arrangements including employment of Security personnel to ensure the protection of all materials, equipment and 'Works' from theft, fire, pilferage and any other damages and loss. All materials of the Contractor shall enter and leave the Project 'Site' only with the written permission of NLCIL in the prescribed manner.
- 13.0 **CONTRACTOR'S MATERIALS BROUGHT ON TO SITE:-**
- 13.1 The Contractor shall bring to 'Site' all the equipment, components, parts, materials, including equipment, tools and tackles for the purpose of the 'Works' under intimation to NLCIL. All such goods shall from the time of their being brought may be used for the purpose of the 'Works' only and shall not on any account be removed or taken away by the Contractor without the written permission of NLCIL. But, the Contractor shall nevertheless be solely liable and responsible for any loss or destruction thereof and damage thereto.
- 13.2 NLCIL shall have lien on such goods for any sum or sums which may at any time be due or owing to him by the Contractor, under in respect of or by reasons of the 'Contract'. After giving a fifteen (15) days' notice in writing of his intention to do so, NLCIL shall be at liberty to sell and dispose of any such goods, in such manner as he shall think fit including public auction or private treaty and to apply the proceeds in or towards the satisfaction of such sum or sums due as aforesaid.
- 13.3 After the completion of the 'works' the Contractor shall remove from the 'Site' under the direction of NLCIL his own materials such as equipment, tools and tackles, scaffolding, etc. which were brought by him with the written permission of NLCIL. If the Contractor fails to remove such materials, within 15 (fifteen) days of issue of a notice by NLCIL to do so, then NLCIL shall have the liberty to dispose off such materials and credit the



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proceeds thereto the account of the Contractor.

13.4 On completion of the work, all rubbish, kilns, vats, tanks, materials and temporary structure of any sort or kind used for the purpose or connected with the work are to be removed by the Contractor and all pits and excavations filled up and the site handed over in a tidy and workmanlike condition and no final payment in settlement of the account for the said work shall be held to be due or shall be made to the Contractor till such site clearance shall have been effected by him and such clearance may be made by NLCIL at the expenses of the Contractor in the event of his failure to comply with this provision within 7 days after receiving notice in writing from NLCIL to that effect. If it becomes necessary for NLCIL to have the site cleared as indicated above at the expense of the Contractor, NLCIL shall under no circumstances be held liable for any losses or damages to such of Contractor's property as may be on such site due to such removal there from, which removal may be effected by means of public sale of such materials and property or in such a way as seems fit and most convenient to NLCIL.

13.5 The Contractor must take sufficient care in moving his equipment from one place to another so that they may not cause any damage to the property of NLCIL, particularly to the existing structures and overhead and underground services and in the event of Contractor's failure to do so, the cost of such damages shall be borne by the Contractor.

14.0 MODIFICATION AND UPGRADATION

14.1 The Contractor shall advise NLCIL of any modifications or upgrades of the Solar PV Power Plant for increasing safety and reliability, improved production performance.

14.2 If Contractor on his own initiative wishes to upgrade or modify the Solar PV Power Plant then, the Contractor may carry out the upgrade at his own cost with the prior written consent of NLCIL.

14.3 If any alteration or modification is required to be made in the Solar PV Power Plant to comply with all provision of law for the time being in force on the Commencement Date of this agreements the Contractor shall take necessary step to make Solar PV Power Plant comply with the provisions of such law.

14.4 If modification is required in the Solar PV Power Plant to comply with the provisions of any Law, which came into force after the commencement date of this agreement, then such modification shall be taken up by NLCIL. The Contractor at the cost of NLCIL on the terms & conditions as may be agreed by the parties and in such case the time spent shall not be classified as down time hours.

14.5 Upgrading of Solar PV Power Plant will be done in consultation with O.E.M. (Original Equipment manufacturer) & through the Contractor on mutually agreed terms & conditions.

15.0 ACCIDENT / DAMAGE

15.1 If there is any damage to Solar PV Power Plant due to accident or otherwise and it is established that the said accident and/or damage has been occurred due to the operators faults or negligence, Contractor shall be responsible for payment towards rectification of



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such damage of Solar PV Power Plant.

- 15.2 If any damage is caused to Solar PV Power Plant and / or accident occurred at the site of the said Solar PV Power Plant, due to improper maintenance of the Solar PV Power Plant by the Contractor, the Contractor shall be responsible and liable against all such damage and compensation and indemnify Purchaser against such loss or damage incurred or be incurred by NLCIL.
- 15.3 The parties hereto are independent to each other where in NLCIL is a principal, Contractor is a Contractor and all the relationships between NLCIL and Contractor under this agreement are contractual in nature but none else.
- 15.4 Nothing in this agreement shall be deemed to constitute or form an employment, partnership, agency or any other form of business relationship between the parties except as stated above.
- 16.0 **WORKS:**
- 16.1 The site of work shall be kept clean, free from rubbish and dismantled materials. All rejected and unwanted materials, debris etc., shall be removed from the site then and there. If the Contractor fails to do such clearance work, the work shall be got done departmentally, two days after the issue of a single written notice to the Contractor and the expenditure incurred therefore shall be recovered from the Contractor 's bills.
- 16.2 Any faulty work noticed and pointed out by NLCIL shall be rectified by the Contractor
- 16.3 The Contractor shall Work in co-ordination and close co-operation with other Contractor's staff working in the area.
- 17.0 **MATERIALS:-**
- 17.1 The material used shall comply with the relevant standard specification and shall be approved by NLCIL.
- 18.0 **LABOUR:-**
- 18.1 Under the provisions of the Contract Labour (Regulation and Abolition) Act 1970 the Contract Labour (Regulation and abolition) Rules 1971 any Contractor who employs or employed 20 or more men on any day of the preceding 12 YEARS shall obtain a Licence. The Licence so obtained shall be renewed every year.
- 18.2 The Contractor shall maintain the following registers.

Register of workmen in Form XIII as per rule 75 of the Contract Labour (R
& A Rule) central 1971.)
Muster Roll. Register
of wages



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Register of deduction.
Register of over time.
Register of fines.
Register of Advances.
Wages slip.

- 18.3 The Contractor shall issue an employment card in Form XIV as per rule 76 of the Contract Labour (Regulation and Abolition) Rules 1971.
- 18.4 As per the provisions under Chapter IV of the Central Contract Labour (Regulation and Abolition) Rules 1971 the Contractor should observe the rules strictly regarding the payment of wages to the contract workmen.
- 18.5 Failure to comply with the statutory provisions will entail prosecution by the statutory authorities beside black listing the Contractor.

"The Contractor should produce the following declaration along with their application for issue of identity cards to the workmen."Certified that the following contract workers engaged by me bear good conduct, that their antecedents have been verified and found satisfactory".

Sl. No.	Name of the Contract Worker	Address	Identification Marks

19.0 INSURANCE:-

- 19.1. The Contractor shall arrange for Workmen's Compensation Insurance, till completion of Operation & Maintenance period which shall also be the responsibility of the Contractor.
- 19.2 The above are only illustrative list of insurance covers normally required and it will be the responsibility of the Contractor to maintain at his cost all necessary insurance coverage to the extent both in time and amount to take care of all his liabilities either direct or indirect in pursuance of the 'Contract'.
- 19.3 Contractor shall ensure that where applicable, its Sub-Contractor(s) shall take out and maintain in effect adequate insurance policies for their personnel and vehicles and for work executed by them under the Contract, unless such Sub-Contractors are covered by the policies taken out by the Contractor.
- 19.4 NLCIL reserves the right to take out whatever policy that is deemed necessary by him if the Contractor fails to keep the said policy alive and valid at all times and / or causes lapses in payment of premium thereby jeopardising the said policy. The cost of such policy(s) shall be recovered / deducted from the amount payable to the Contractor.



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20. DEATH RELIEF FUND

The Contract Workmen Trust has been established and came into effect to pay solatium to the dependants of deceased contract workmen who die in accident arising out of and in the course of employment or due to any other cause within the precincts of employment. All the Contract workmen engaged in this Contract are eligible to become the members/beneficiaries of this scheme and the benefits under this scheme shall be extended to nominees/ dependants of the deceased contract workmen.

The Corpus Fund required for the Death Relief Fund shall be in the form of contributions by the Contractor Employers who are executing works in NLC India Limited. An amount equivalent to 0.2% Gross value of bills shall be recovered towards Corpus Fund from every bill value raised by the Contractor against all Agreements/Contracts. However, no provision is made in the Tender towards this. This has to be borne by the Contractor.

Monthly contributions to the death relief fund of contract workmen shall be deducted by the Contractor Employers concerned @ Rs.25/- from every contract workman engaged by Contractor Employer for the works in NLCIL from their salary /wages payable. In order to facilitate this, necessary deduction will be made from the bills of the contractor employers based on Form-D (Attendance Register) & Form-B (Wage Register). Equal monthly contribution to the fund@ Rs.25/-per contract workman will be made by the Principal Employer NLCIL i.e the Concerned Unit head/Unit Account Centre. The Contribution of the Contract workmen and the Principal employer shall be deposited by the Accounts Centre Concerned to the Corpus fund of Contract Workmen Trust, on monthly basis under GL code 637.

21.0 JURISDICTION:

In the event of any dispute while executing the work, such dispute would be subject to the jurisdiction of the respective Civil Courts pertaining to the work locations.

22.0 RESOLUTION OF DISPUTES

Any dispute / disputes or difference / differences arising out of or in connection with the Contract shall, to the extent possible be settled amicably between the parties.

22.1 INFORMAL DISPUTE RESOLUTION

- a) The parties agree to use reasonable efforts to resolve all disputes equitably and in good faith. If any dispute between the Contractor and the Purchaser arises it shall in the first instance be referred in writing to the Purchaser, who shall endeavor to resolve the dispute amicably and render a decision within 30 days. The period of 30 days shall be reckoned from the date of intimation of the dispute received by the Purchaser.
- b) Save as hereinafter provided, in respect of a dispute so referred, the decision of the Purchaser shall be final and binding upon the Parties until the completion of the Contract and shall forthwith be given effect to by the Contractor who shall proceed with the Contract with all due diligence, whether or not



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either Party has sought conciliation of the dispute as hereinafter provided.

22.2 CONCILIATION

- a) If the party is dissatisfied with the decision rendered by the Purchaser, or if the Purchaser omits or declines to render a decision within the said period of 30 days, then within a further period of 30 days, the dissatisfied Party shall require by a notification that the dispute be referred to Conciliation in the manner as per the „NLC Conciliation Rules“, copy of which is available with the NLCIL offices and also in NLCIL website. The Contractors shall abide by the NLC Conciliation Rules for resolving any dispute arising out of this contract. Such a notification shall be in writing and it shall be duly served on the other party. Failure to invoke the Conciliation within the time stipulated shall debar the party from seeking reference to Conciliation.
- b) Except as otherwise provided in this clause, any dispute arising out of or relating to this agreement, or the breach, termination or validity thereof, shall be settled by Conciliation in accordance with „NLC Conciliation Rules“. The Conciliation shall be held at Chennai. The Conciliation proceedings shall be conducted, and the award shall be rendered in English. The award shall state the reasons upon which it is based.
- c) There shall be three Conciliators, who will be appointed as per Section-5 of the „NLC Conciliation Rules“.
- d) The Contract conditions and the rights and obligations of the Parties, shall remain in full force and effect during the Conciliation proceedings. Supplies and / or services under the Contract shall, if reasonably possible, continue during the Conciliation proceedings.
- e) For the purpose of this clause, the term „dispute“ shall include a demand or difference of any kind whatsoever, arising out of the Contract and respecting the performance of the Contract, whether during the Contract period including extensions if any, or after completion, and whether before or after termination, abandonment or breach of the Contract. (except as to any matter, the decision of which is specifically otherwise provided for in any of these conditions).
- f) Only in case of failure to resolve the dispute through Conciliation, Arbitration can be resorted to.
- g) Once the settlement agreement is signed with respect to a dispute, the same dispute is not subject to further appeal through Arbitration or Judicial Proceedings.
- h) Anything not found included in the „NLC Conciliation Rules“, but necessary to conduct the conciliation proceedings will be dealt with as per the provisions of the Arbitration and Conciliation Act 1996 -Part-III“ or as per the statutory provisions modified from time to time.

22.3 ARBITRATION

- a) Arbitration shall be applicable only for the dispute(s) involving claims from Rs.25 Lakhs to Rs.20 Crores. The claims below Rs.25 Lakhs are subject to the jurisdiction of the respective Civil Court having jurisdiction over delivery locations. The claims above Rs.20 Crores are subject to the exclusive jurisdiction of the Court situated at Chennai.
- b) In case of failure to resolve the dispute through Conciliation, then within a further period of 30 days, the dissatisfied Party may require by a notification that the dispute be referred to arbitration in the manner hereinafter provided. Such a notification shall be in writing and it



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shall be duly served on the other party. Failure to invoke the arbitration within the time schedule shall debar the party from seeking reference to arbitration.

- c) Except as otherwise provided in this clause, any dispute arising out of or relating to this agreement, or the breach, termination or validity thereof, shall be finally settled by arbitration in accordance with the Arbitration and Conciliation Act 1996 (the "Act") as may be amended from time to time. The arbitration shall be held at Chennai, Tamil Nadu. The arbitration proceedings shall be conducted, and the award shall be rendered in English. The award shall state the reasons upon which it is based.
- d) There shall be three (3) arbitrators of whom each Party shall appoint one. The Party requesting that the dispute be referred to arbitration shall, within 30 days of the notification, appoint an arbitrator as also call upon the other Party to appoint an arbitrator within thirty
- e) (30) days. The two arbitrators so appointed shall, within thirty (30) days of the date on which the second of them is appointed, agree on the third arbitrator who shall act as the presiding arbitrator of the tribunal.
- f) The agreement and the rights and obligations of the Parties, shall remain in full force and effect pending the award in any arbitration proceedings. Supplies and/ or services under the Contract shall, if reasonably possible, continue during arbitration proceedings.
- g) For the purposes of this clause, the term 'dispute' shall include a demand or difference of any kind whatsoever, arising out of the Contract and respecting the performance of the Contract, whether during the Contract period including extensions if any, or after completion, and whether before or after termination, abandonment or breach of the Contract (except as to any matter, the decision of which is specifically provided for in any of these conditions).
- h) The Arbitrators shall publish a speaking award which shall be binding on both the parties. The party, in whose favor the award is passed, shall be entitled to recover the entire cost of Arbitration from the other party. The Arbitrator shall indicate the above in their award clearly.

23.0 GOVERNING LAWS AND REGULATIONS

This Contract shall be governed and construed according to the Indian Laws and Regulations.

24.0 CONTRACTOR'S DEFAULT:

- 24.1 If the Contractor discontinues to do the work before the completion of time indicated in tender, in such case NLCIL may give notice in writing and shall be at liberty to employ other person / persons and forthwith execute such part of the works as the Contractor may have neglected to do or if NLCIL shall think fit it shall be lawful for him without prejudice to any other right he may have under the "Contract" to take the Works wholly or in part out of the Contractor's hands and re- contract with any other person or persons, complete the works or any part thereof and in that event NLCIL shall be free to use without hire charges, of all Contractors equipment that may have been at the time on the Site' in connection with the Works without being responsible to the Contractor for fair wear and tear thereof and to the exclusion of any right of the Contractor, over the same and NLCIL shall be entitled to retain and apply any balance of money which may otherwise be due in the Contract by him to the Contractor or such part thereof



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as may be necessary to the payment of the cost of executing the said part of the Works or of completing the works as the case may be. If the cost of completing the works or executing apart thereof as aforesaid shall exceed the balance due to the Contractor, the Contractor shall pay such excess.

- 24.2 In such an event NLCIL shall also have the right to encash the Performance Bank Guarantee for non-performance of Contract.

25.0 TERMINATION OF CONTRACT

- 25.1 NLCIL reserves the right to terminate the Contract either in part or in full due to reason other than those mentioned under clause entitled Contractor's Default. NLCIL shall, in such an event, give 30 (thirty) days notice in writing to the Contractor of its decision to do so.
- 25.2 The Contractor upon receipt of such notice shall discontinue the work on the date and to the extent specified in the notice, make all reasonable efforts to obtain cancellation of all order and Contracts to the extent they are related to the work terminated and upon terms satisfactory to NLCIL, stop all further sub-Contracting or purchasing activity related to the work terminated and assist NLCIL in maintenance, protection and disposition of the works acquired under the Contract by NLCIL.
- 25.3 In the event of such a termination, the Contractor shall be paid compensation, equitable and reasonable dictated by the circumstances prevalent at the time of termination. No consequential damages shall be payable by the NLCIL to the Contractor in the event of termination.
- 25.4 If the Contractor is an individual or a Proprietor concern and the individuals or the proprietor dies and if the Contractor is a partnership concern and one of the partners dies, then unless the NLCIL is satisfied that the legal representatives of the individual Contractor or the Proprietor of the proprietary concern and in the case of partnership, surviving partners, are capable of carrying out and completing the Contract NLCIL shall be entitled to cancel the Contract as to its incomplete part without being in any way liable to payment of any compensation to the estate of deceased Contractor and/ or to the surviving partners of the Contractor's firm on account of the cancellation of the Contract. The decision of NLCIL that the legal representatives of the deceased Contractor or surviving partners of the Contractor's firm cannot carry out and complete the Contract shall be final and binding on the parties. In the event of such cancellation NLCIL shall not hold the estate of the deceased Contractor and/ or the surviving partners of the estate of the deceased Contractor and/ or the surviving partners of the Contractor's firm liable to damages for not completing the Contract.

26.0 LABOUR LAWS:

The Governing Acts as applicable and as amended shall be strictly followed.

Some of such acts are given below:

The Workmen's Compensation Act 1923

The Trade Unions Act 1926

The Payment of Wages Act 1936



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The Minimum Wages Act 1948
The Industrial Dispute Act 1947
The Factories Act 1948
The Maternity Benefit Act 1961
The Employees Provident Fund Act 1952
The Mines Act 1952
The Bonus Act 1965
The Contract Labour Regulation Act 1970 – 71
The Payment of Gratuity Act 1972
The Bonded Labour Act 1976
The Equal Remuneration Act and Rules 1976
The Inter state migrant workmen Act 1979
The Child Labour Act 1986
The Building and other Construction Works Act 1995



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**ANNEXURE 1
FORMAT OF AFFIDAVIT**

From:

(Name & Address of Bidder)

.....
.....
.....
.....

We do hereby declare that the contents of the offer submitted against this tender (Tender No _____ dated _____) have been submitted after fully understanding that the information contained in the offer and the documents enclosed/provided along with the bid are true, correct and complete in every aspect and that if any information contained therein is found to be false/incorrect/fabricated, offer shall be considered as null and void and we shall be liable for any penal action as per the provisions of Law for the time being in force.

- i) I/We.....Partner/ Legal Attorney/ Proprietor/ Accredited Representative of M/sdeclare that, we are submitting our offer/bid for the supply of equipments/material/works/services vide offer dated.....
- ii) The contents/enclosures/documents of the offer are submitted after fully understanding that all the information furnished by me / us are correct and true and complete in every respect and all documents/credentials submitted along with the offer/bid are genuine, authentic, true and valid.
- iii) During the verification of offer or even at a later date, if any information or document submitted by me/us is found to be false /fabricated/ incorrect, the said offer shall be considered absolutely null and void and action as deemed fit shall be taken against me / us including forfeiture of EMD/Bid Guarantee/ Security Deposit /Contract Performance Guarantee and action of suspension/banning of my / our firm (including all partners of the firm)/company as per the tender conditions and law.

Authorized Signatory
(Name & Designation)

Place:

Date:

Seal:



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ANNEXURE-2

FORMAT OF BID GUARANTEE

1. This Guarantee should be furnished by a scheduled commercial Bank in India authorized by RBI other than Bank of China to issue a Bank Guarantee in the same format as given below. NLCIL reserves its right to reject the Bank Guarantee if the same is not in the specified format.
2. This Bank Guarantee should be furnished on stamp paper of value not less than Rs. 80/-
3. The Bid guarantee amount shall be in Indian Rupees only.
4. The Bid guarantee shall be executed only as per the format prescribed by NLCIL. In the event of any deviation, the decision of NLCIL as to whether the same could be accepted is final and binding on the Bidder.
5. The stamp paper should have been purchased in the Name of the Bank executing the guarantee/Name of the bidder.
6. NLCIL reserves its right to reject the offer of the Bidder, if any of the above conditions are not adhered to while submitting the bid.
7. The bank guarantee issued by the issuing Bank on behalf of Bidder in favour of "Name of the Company" shall also be confirmed through Structured Financial Messaging System (SFMS).
8. Bank Guarantee submitted in physical mode, including EMD/ Bid Guarantee, which cannot be verifiable through (SFMS) will be rejected summarily.

Bank Guarantee No:

Ref.: Tender No.

Date:

To

The GENERAL MANAGER / REPP,

NLC India Limited.

Corporate Office, Block-I

Neyveli – 607 801, Cuddalore Dist.

Tamil Nadu, India.

Dear Sirs,

In accordance with your "Invitation for Bid" under your Tender No.....
.....dated.....M/s.....
..... hereinafter called the BIDDER, having its registered office/head office
at.....with the following Directors on their Board of
Directors/Partners of the firm:

- | | |
|----|----|
| 1. | 2. |
| 3. | 4. |
| 5. | 6. |
| 7. | 8. |



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9.

10.

wish to participate in the said Bid for, as an
irrevocable Bank Guarantee against Bid Guarantee for a sum of.....(*)
.....(in words and figures) valid for
180 days from..... (the date of Bid Opening) is required to be submitted by the
BIDDER as a condition precedent for participation in the said bid, which amount is liable to be
forfeited on the happening of any contingencies mentioned in the Bid Documents.

We the Bank at (local address)
having our Head Office at guarantee and undertake to pay immediately on
demand by NLC India Limited.

This Guarantee shall be irrevocable and shall remain valid upto..... ** If
any further extension of this Guarantee is required, the same shall be extended to such required
period on receiving instructions from M/s..... on whose behalf this
Guarantee is issued.

Notwithstanding anything contained herein:

- (a) our liability under this bank guarantee shall not exceed..... (in words)
- (b) this bank guarantee shall be valid upto and
- (c) we are liable to pay the guaranteed amount or any part thereof under this bank guarantee only
if you serve upon us a written claim or demand on or before.....

IN WITNESS WHEREOF the Bank, through its authorized officer, has set its hand and stamp on
thisday of.....2022 at.....

Signature :

Name :

Designation :

Staff Code No. :

Banker's Seal :

Date :

Witness:

- | | | | |
|----------------------------|---|----------------------------|---|
| 1. Signature | | 2. Signature | |
| Full name in block letters | : | Full name in block letters | : |
| Designation | : | Designation | : |
| Address | : | Address | : |

Note:

* The amount shall be as specified in the Clause No.3.0 of Section III of Tender Specifications
(This Volume).

** This date should be 180 days from the date of Bid opening.



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ANNEXURE-3

FORM OF BID

Sl.No	Description	Bidder Response
1.0	Having carefully examined all the Tender Documents and its Amendments / errata / Corrigendum / Clarifications issued till the date of tender opening, we agree to Complete the WORKS in conformity with all the terms and conditions stated in Tender Documents and its Amendments / Errata / Corrigendum / Clarifications issued till the date of tender opening and as per time schedule given in Tender Document. The Services offered are of best and of latest technology and of international standards.	YES
2.0	We undertake, in case our bid is accepted, to commence the work from the date of handing over of the site and to complete and deliver the whole of the work and responsibilities comprised in the contract within as per time schedule given in Tender document.	YES
3.0	We are submitting the Bid Guarantee as instructed by you. This Bid Guarantee shall be governed as per the stipulations provided in the tender document	YES
4.0	We agree to abide by and keep our Bid valid initially for a period of 120 days from the date of opening of Bid (Part I) by NLC India Ltd. (NLCIL) and it shall remain binding on us and may be accepted at any time before the expiry of that period.	YES
5.0	I/We, the undersigned have carefully examined and understood the Bidding Documents including the amendments / errata / Corrigendum / Clarifications issued till the date of tender opening. I / We hereby agree to carry out the entire works as described in the specifications in conformity with the specifications and Bidding documents, as per prices quoted by us in the Schedule of Prices.	YES
6.0	Should our Bid be accepted, we hereby agree to abide by and fulfill all Terms and conditions of Tender Document as accepted by us and in default thereof, to forfeit and pay to NLCIL or NLCIL's successors, assignees or authorized nominees such sum of money as are stipulated in conditions contained in Tender Documents and agree to furnish Security Deposit for a sum equal to 5% of the aggregate sum of contract price within 15 days from the date of signing of contract agreement. We understand that NLCIL is not bound to accept the lowest or any Bids received and NLCIL has the right to reject any bid, without assigning any reason whatsoever.	YES
7.0	This Bid together with written acceptance thereof shall constitute a binding CONTRACT between NLCIL and ourselves till a formal contract is executed.	YES



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ANNEXURE-4

ACCEPTANCE FOR TECHNO-COMMERCIAL CONDITIONS

S. No.	DESCRIPTION	BIDDER'S RESPONSE
1.0	Please confirm acceptance of all the commercial terms and conditions, General Terms and conditions, safety code for contractor stipulated in the tender document.	Yes
2.0	Please confirm acceptance of all the Technical terms and conditions, Scope of Work stipulated in the tender document.	Yes

Signature of the service provider /Authorized Representative:

Company Seal:

Date:

Place:



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ANNEXURE-5

**(To be executed on plain paper and applicable for all tenders
of value above Rupees one (1) Crore)**

Integrity Pact

Between

NLC India Limited (NLCIL) hereinafter referred to as "The Principal" and

..... hereinafter referred to as "The Bidder/ Contractor"

Preamble:

The Principal intends to award, under laid down organizational procedures, contract/sfor The Principal values full compliance with all relevant laws and regulations, and the principles of economic use of resources, and of fairness and transparency in its relations with its Bidder/s and Contractor/s.

In order to achieve these goals, the Principal cooperates with the renowned international Non-Governmental Organization "Transparency International" (TI). Following TI's national and international experience, the Principal will appoint an Independent External Monitor who will monitor the tender process and the execution of the contract for compliance with the principles mentioned above.

Definitions:

In pursuance of the above Pact, for the purposes of this provision, the Principal defines the relevant terms set forth therein as under:

- 1) "Contract" means the contract entered into between the Principal and Bidder (or Tenderer) / Contractor for the execution of work mentioned in the preamble above.
- 2) "Contractor" means the bidder or tenderer whose tender (bid) has been accepted by the principal or Company whose tender (bid) has been accepted and shall be deemed to include his/its/their successors, representatives, heirs, executors and administrators unless excluded by the Contract.
- 3) "Coercive practice" means harming or threatening to harm, directly or indirectly, persons or their property to influence their participation in the procurement process or affect the execution of a contract; In order to achieve these goals, the Principal proposes to appoint one or more Independent External Monitor/s who will monitor the tender process and the execution of the contract for compliance with the principles mentioned above.
- 4) "Collusive practice" means a scheme or arrangement between two or more bidders, with or without the knowledge of the Principal designed to establish bid prices at artificial, noncompetitive levels; and
- 5) "Corrupt practice" means the offering, giving, receiving or soliciting of anything of value to influence the action of a public official in the procurement process or in contract execution;
- 6) "Fraudulent practice" means a misrepresentation of facts in order to influence a procurement process or the execution of a contract to the detriment of the Principal and includes collusive practices among



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Bidders (Prior to or after bid submission) designed to establish bid prices at artificial, non-competitive levels and to deprive the Principal of the benefits of free and open competition;

- 7) "Independent External Monitor" means a person, hereinafter referred to as IEM appointed, in accordance with Section 8 below, to verify compliance with this agreement.
- 8) "Party" means a signatory to this agreement.
- 9) "Purchaser" means NLC INDIA LTD, Neyveli, incorporated under the Companies Act 1956, having their registered Office at Chennai-600 010 and includes their successors.
- 10) "Bidder or Tenderer" means the person, firm or company submitting a tender (bid) against the invitation to Tender (bid) and includes his/its/their staff, consultants, parent and associate and subsidiary companies, agents, consortium and joint venture partners, sub- contractors and suppliers, heirs, executors, administrators, representatives, successors.

Section 1 - Commitments of the Principal

- (1) The Principal commits itself to take all measures necessary to prevent corruption and to observe the following principles:
 - 1 No employee of the Principal, personally or through family members, will in connection with the tender for, or the execution of a contract, demand, take a promise for or accept, for him/herself or third person, any material or immaterial benefit which he/she is not legally entitled to.
 - 2 The Principal will, during the tender process treat all Bidders with equity and reason. The Principal will in particular, before and during the tender process, provide to all Bidders the same information and will not provide to any Bidder confidential/additional information through which the Bidder could obtain an advantage in relation to the tender process or the contract execution.
 - 3 The Principal will exclude from the process all known prejudiced persons.
- (2) If the Principal obtains information on the conduct of any of its employees which is a criminal offence under the relevant Anti-Corruption Laws of India, or if there be a substantive suspicion in this regard, the Principal will inform its Vigilance Office and in addition can initiate disciplinary actions.

Section 2 - Commitments of the Bidder/Contractor

- (1) The Bidder / Contractor commits itself to take all measures necessary to prevent corruption. He commits himself to observe the following principles during his participation in the tender process and during the contract execution.
 1. The Bidder / Contractor will not, directly or through any other person or firm, offer, promise or give to any of the Principal's employees involved in the tender process or the execution of the contract or to any third person any material or immaterial benefit which he/she is not legally entitled to, in order to obtain in exchange any advantage of any kind whatsoever during the tender process or during the execution of the contract.
 2. The Bidder / Contractor will not enter with other Bidders into any undisclosed agreement or understanding, whether formal or informal. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non- submission of bids or any other actions to restrict competitiveness or to form cartels in the bidding process.



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3. The Bidder /Contractor will not commit any offence under the relevant Anticorruption Laws of India; further the Bidder /Contractor will not use improperly, for purposes of competition or personal gain, or pass on to others, any information or document provided by the Principals part of the business relationship, regarding plans, technical proposals and business details, including information contained or transmitted electronically.
 4. The Bidder / Contractor will, when presenting his bid, disclose any and all payments he has made, is committed to or intends to make to agents, brokers or any other intermediaries in connection with the award of the contract.
 5. The Bidder / Contractor of foreign origin shall disclose the name and address of the Agents / representatives in India, if any. Similarly the Bidder / Contractor of Indian Nationality shall furnish the name and address of the foreign principals, if any.
 6. In Case of subcontracting, the principal contractor shall take the responsibility of the adoption of IP by the sub-contractor.
- (2) The Bidder / Contractor will not instigate third persons to commit offences outlined above or be an accessory to such offences.

Section 3 - Disqualification from tender process and exclusion from future contracts

If the Bidder, before contract award has committed a transgression through a violation of Section 2 or in any other form such as to put his reliability or credibility as Bidder into question, the Principal is entitled to disqualify the Bidder from the tender process or to terminate the contract, if already signed, for such reason.

- (1) If the Bidder / Contractor has committed a transgression through a violation of Section 2 such as to put his reliability or credibility into question, the Principal is entitled also to exclude the Bidder /Contractor from future contract award processes. The imposition and duration of the exclusion will be determined by the severity of the transgression. The severity will be determined by the circumstances of the case, in particular the number of transgressions, the position of the transgressors within the company hierarchy of the Bidder and the amount of the damage. The exclusion will be imposed for a minimum of 6 YEARS and maximum of 3 years.
- (2) A transgression is considered to have occurred if the Principal after due consideration of the available evidence, concludes that no reasonable doubt is possible.
- (3) The Bidder accepts and undertakes to respect and uphold the Principal's absolute right to resort to and impose such exclusion and further accepts and undertakes not to challenge or question such exclusion on any ground, including the lack of any hearing before the decision to resort to such exclusion is taken. This undertaking is given freely and after obtaining independent legal advice.
- (4) If the Bidder / Contractor can prove that he has restored / recouped the damage caused by him and has installed a suitable corruption prevention system, the Principal may revoke the exclusion prematurely, provided such system has been audited by an independent agency.

Section 4 - Compensation for Damages

- (1) If the Principal has disqualified the Bidder from the tender process prior to the award according to Section 3, the Principal is entitled to demand and recover from the Bidder liquidated damages



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equivalent to Earnest Money Deposit / Bid Security.

- (2) If the Principal has terminated the contract according to Section 3 or if the Principal is entitled to terminate the contract according to Section 3, the Principal shall be entitled to demand and recover from the Contractor liquidated damages equivalent to Security Deposit / Performance Bank Guarantee.

Section 5 - Previous transgression

- (1) The Bidder declares that no previous transgressions occurred in the last 3 years with any other Company in any country conforming to the TI approach or with any other Public Sector Enterprise in India that could justify his exclusion from the tender process.
- (2) If the Bidder makes incorrect statement on this subject he can be disqualified from the tender process or the contract, if already awarded, can be terminated for such reason.

Section 6 - Equal treatment of all Bidders / Contractors/ Subcontractors

- (1) The Bidder / Contractor undertakes to demand from all subcontractors a commitment in conformity with this Integrity Pact, and to submit it to the Principal before contract signing.
- (2) The Principal will enter into agreements with identical conditions as this one with all Bidders, Contractors and Subcontractors.
- (3) The Principal will disqualify from the tender process all bidders who do not sign this Pact or violate its provisions.

Section 7 - Criminal charges against violating Bidders/Contractor/ Subcontractors

If the Principal obtains knowledge of conduct of a Bidder, Contractor or Subcontractor, or of an employee or a representative or an associate of a Bidder, Contractor or Subcontractor, which constitutes corruption, or if the Principal has substantive suspicion in this regard, the Principal will inform the Vigilance Office.

Section 8 – Independent External Monitor (IEM)

- (1) The IEMs have been appointed by the Central Vigilance Commission. The task of the IEMs is to review independently, whether and to what extent the parties comply with the obligations under this agreement.
- (2) The IEM is not subject to instructions by the representatives of the parties and performs his functions, neutrally and independently. He reports to the Chairperson of the Board of the Principal.
- (3) The Contractor accepts that the IEM has the right to access without restriction to all Project documentation of the Principal including that provided by the Contractor. The Contractor will also grant the IEMs, upon his request and demonstration of a valid interest, unrestricted and unconditional access to his project documentation. The same is applicable to Subcontractors. The IEM is under contractual obligation to treat the information and documents of the Bidder / Contractor / Subcontractor with confidentiality.
- (4) The Principal will provide to the IEMs sufficient information about all meetings among the parties related to the Project provided such meetings could have an impact on the contractual relations between the Principal and the Contractor. The parties offer to the IEMs the option to participate in such meetings.



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- (5) As soon as the IEM notices, or believes to notice, a violation of this agreement, he will so inform the Management of the Principal and request the Management to discontinue or heal the violation, or to take other relevant action. The IEMs can in this regard submit non-binding recommendations. Beyond this, the IEM has no right to demand from the parties that they act in a specific manner, refrain from action or tolerate action.
- (6) After award of work, the IEMs shall look into any issue related to execution of contract if specifically raised before them. However, the IEMs may suggest systemic improvements to the Principal if considered necessary to bring about transparency, equity and fairness in the system of procurement.
- (7) The IEMs would examine all complaints received by them and give their recommendations/views to the Chief Executive of the Principal, at the earliest. They may also send their report directly to the CVO in case of suspicion of serious irregularities requiring legal/administrative action. Only in case of very serious issue having a specific, verifiable Vigilance angle, the matter should be reported directly to the Commission. IEMs are expected to tender their advice on the complaints, within 30 days.
- (8) For ensuring the desired transparency and objectivity in dealing with the complaints arising out of any tendering process or during execution of contract, the matter should be examined by the full panel of IEMs jointly, who would look into the records, conduct an investigation and submit their joint recommendations to Principal.
- (9) IEMs should examine the process integrity, they are not expected to concern themselves with fixing of responsibility of officers.
- (10) In the event of any dispute between the Principal and the Contractor/Bidder, in case, both the parties are agreeable, they may try to settle the dispute through mediation before the IEMs in a time bound manner, not more than five meetings for a particular dispute resolution. The sitting fees and expenses towards travel and stay arrangements for such meetings for the IEMs shall be equally shared by both the parties.
- (11) If required, the Principal may adopt any mediation rules for this purpose. In case, the dispute remains unresolved even after mediation by the panel of IEMs, the Principal may take further action as per the terms and conditions of the contract.
- (12) The advisory role of IEMs is envisaged as that of a friend, philosopher and guide. The advice of IEMs would not be legally binding and it is restricted to resolving issues raised by a bidder regarding any aspect of the tender which allegedly restricts competition or bias towards some bidders. At the same time, it must be understood that IEMs are not consultants to Principal. Their role is independent in nature and the advice once tendered would not be subject to review at the request of Principal.
- (13) Issues like warranty/guarantee etc shall be outside the purview of IEMs.
- (14) The reference to 'IEM' would include both Singular and Plural.
- (15) The IEM can be removed from his office, before the expiry of his tenure only with the approval of the Board of the Principal.

Section 9 - Pact Duration



**COMPREHENSIVE OPERATION AND MAINTENANCE OF
NLCIL's 65 MW (40 MW AT BLOCK 5 AND 25 MW AT
KOLLIRUPPU) SOLAR POWER PLANT AT NEYVELI FOR
THREE YEARS DURATION**

Integrity Pact, in respect of a particular contract, shall be operative from the date IP is signed by both the parties till the final completion of the contract. Any violation of the same would entail disqualification of the bidders and exclusion from future business dealings. For all other bidders it shall be operative upto 6 YEARS after the contract has been awarded.

If any claim is made / lodged during this time, the same shall be binding and continue to be valid despite the lapse of this pact as specified above, unless it is discharged / determined by Chairperson of the Principal.

Section 10 – Other provisions

- (1) This agreement is subject to Indian Law. Place of performance and jurisdiction is the Registered Office of the Principal, i.e. Chennai / Neyveli. The Arbitration clause provided in the main tender document / contract shall not be applicable for any issue / dispute arising under Integrity Pact.
- (2) Changes and supplements as well as termination notices need to be made in writing.
- (3) If the Contractor is a partnership or a consortium this agreement must be signed by all partners or consortium members.
- (4) Should one or several provisions of this agreement turn out to be invalid, the remainder of this agreement remains valid. In this case, the parties will strive to come to an agreement to their original intentions.
- (5) “A person signing IP shall not approach the Courts while representing the matters to IEMs and he / she will await their decision in the matter”.

For the Principal

For the Bidder / Contractor

Place

Date

Witness 1.....

Witness 1

Witness 2.....

Witness 2.....